AMENDED AND RESTATED
DECLARATION OF COVENANTS, CONDITIONS AND RESTRICTIONS

MEADOW MOUNTAIN PROPERTY OWNERS ASSOCIATION NO. II-A
TRAVIS COUNTY, TEXAS

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AMENDED AND RESTATED
DECLARATION OF COVENANTS, CONDITIONS AND RESTRICTIONS

of

MEADOW MOUNTAIN PROPERTY OWNERS ASSOCIATION NO. II-A
TRAVIS COUNTY, TEXAS

This Amended and Restated Declaration of Covenants, Conditions and Restrictions ("Declaration") is made by the Meadow Mountain Property Owners Association No. II-A, Inc. ("Association"), a Texas nonprofit corporation, acting through its elected Board of Directors, on behalf of all Owners of Lots within Meadow Mountain Planned Unit Development No. II-A, Travis County, Texas.

The original Declaration of Covenants, Conditions and Restrictions of Meadow Mountain Property Owners Association No. II-A was filed with the Travis County Clerk on November 16, 1981, and was executed by Capital Land and Development Corporation as Declarant. All Lots within Meadow Mountain Planned Unit Development No. II-A have since been conveyed to individual Owners, and the period of Declarant control has fully expired under the original Declaration and applicable Texas law.

The Association, now composed exclusively of Owner-members, desires to amend and restate the original Declaration in its entirety to modernize and clarify its terms, eliminate provisions that applied only to the original Declarant and are now obsolete, and conform the Declaration to the requirements of the Texas Property Code, including Chapter 209. All substantive covenants, conditions, restrictions, easements, maintenance obligations, architectural controls, and assessments originally intended to run with the land for the benefit of all Owners are preserved in full.

This restatement has been approved as required by the amendment procedures in Article XIV, Section 4 of the original Declaration and Article VI of the Association Bylaws.

The Association hereby declares that all property described in this Declaration shall be held, sold, and conveyed subject to the following easements, restrictions, covenants, and conditions. These covenants run with the real property and are binding on all parties having any right, title, or interest in the described property, and on their heirs, successors, and assigns. These covenants benefit each Owner.

ARTICLE I – DEFINITIONS

The following terms have the meanings set forth below. These meanings apply throughout this Declaration, the Bylaws of the Association, and any rules and regulations adopted by the Board of Directors.

Section 1. "Association."
"Association" means Meadow Mountain Property Owners Association No. II-A, Inc., a Texas nonprofit corporation, and its successors and assigns. The Association exists to administer, manage, maintain, and enforce the covenants and restrictions in this Declaration, and to collect and disburse assessments for the common benefit of all Owners of Lots within the Properties.

Section 2. "Owner."
"Owner" means any person or entity that holds title to a Lot within the Properties, including contract sellers. It does not include a person whose interest in the Lot exists only as security for an obligation. A person may hold title by deed, judicial order, or other lawful conveyance. The Association is not an Owner of Lots it holds for the purpose of administering the Properties or Common Area.

Section 3. "Properties."
"Properties" means the real property located in the City of Austin, County of Travis, State of Texas, known as Meadow Mountain Planned Unit Development No. II-A, as shown on the plat recorded in Volume 81, Pages 320-321, of the Plat Records of Travis County, Texas. It also includes any additions later brought within the jurisdiction of the Association under this Declaration and applicable law.

Section 4. "Common Area."
"Common Area" means all real property and improvements owned by the Association for the common use and enjoyment of the Owners. The Common Area includes, but is not limited to, greenbelts, walks, park areas, trails, common roadways, drives, and retaining walls, as shown on the plat recorded in Volume 81, Pages 320-321, of the Travis County Plat Records. It does not include individual building Lots. The Association must maintain all Common Area in a manner consistent with the community standards established by this Declaration and the rules and regulations adopted by the Board of Directors.

Section 5. "Lot."
"Lot" means any plot of land, including community building lots, shown on any recorded planned unit development map of the Properties, except the Common Area. Each Lot is a separate parcel of real property subject to this Declaration, the Bylaws, and such rules and regulations as the Board of Directors may adopt from time to time.

Section 6. "Member."
"Member" means any person or entity that holds membership in the Association because of being an Owner of a Lot within the Properties, as set forth in Article III of this Declaration. Membership is attached to and inseparable from ownership of any Lot subject to assessment. Membership rights and obligations transfer automatically on any conveyance of a Lot.

Section 7. "Board of Directors."
"Board of Directors" or "Board" means the elected governing body of the Association, constituted under the Bylaws. The Board exercises all powers of administration and management vested in the Association under this Declaration, the Bylaws, the Articles of Incorporation, and applicable Texas law, including the Texas Nonprofit Corporation Law and the Texas Property Code.

Section 8. "Bylaws."
"Bylaws" means the Bylaws of Meadow Mountain Property Owners Association No. II-A, Inc., as currently in effect and as amended from time to time under the provisions of the Bylaws.

Section 9. "Architecture Review Committee."
"Architecture Review Committee" means the committee appointed by the Board of Directors under Article VI of this Declaration. The Architecture Review Committee reviews and acts on all applications for improvements to Lots and Common Area within the Properties, including all architectural, landscaping, grading, and environmental review functions.

Section 10. "Declaration."
"Declaration" means this Amended and Restated Declaration of Covenants, Conditions and Restrictions of Meadow Mountain Property Owners Association No. II-A, as amended from time to time under Article XIII, Section 3. Upon recordation in the Official Public Records of Travis County, Texas, this Declaration supersedes and replaces the original Declaration filed November 16, 1981, and all amendments, and constitutes the operative governing instrument for covenants, conditions, and restrictions running with the land within the Properties.

Section 11 "Improvement and Alteration."
Any structure, addition, modification, installation, or change to the exterior of a Lot or to the surface of the land, including but not limited to those items described in Article VI, Section 3 of this Declaration. These terms are used interchangeably throughout this Declaration and the Bylaws."

Section 12 "Annual Assessment and Special Assessment."
‘Annual Assessment’ means the regular recurring charge levied by the Association against each Lot pursuant to Article IV of this Declaration. 'Special Assessment' means any assessment levied by the Association against one or more Lots in addition to the Annual Assessment, as authorized under Article IV, Sections 3 or 4 of this Declaration."

Section 13 "Canyonside Trail."
'Canyonside Trail' means the private roadway that constitutes the primary means of vehicular ingress and egress to and from the Properties, as described in Article V, Section 3 of this Declaration. The portions of Canyonside Trail outside the entrance of MMPOA II-A are subject to shared maintenance responsibilities as set forth in Article V, Section 3.

Section 14 "MMPOA I."

'MMPOA I' means Meadow Mountain Property Owners Association No. I, Inc., a Texas nonprofit corporation governing the real property known as Meadow Mountain Planned Unit Development No. I, Travis County, Texas.

Section 15 "Conservation Easement Lot 11."
‘Conservation Easement Lot 11’ means Lot 11 within the Properties as shown on the Plat, which is owned in fee by a private party and is encumbered by a perpetual conservation easement held by the City of Austin, Texas, originally recorded on March 14, 1984, in Volume 08505, Page 00475, of the Official Public Records of Travis County, Texas (also indexed under Instrument No. 2012141584TR in the Travis County electronic records system). The conservation easement prohibits all development of Lot 11. Because the easement renders Lot 11 incapable of residential development and precludes it from deriving the same benefits from Association maintenance and governance services as residential Lots within the Properties, Conservation Easement Lot 11 is exempt from all assessments, charges, and liens created under this Declaration as provided in Article IV, Section 10 of this Declaration. The Association shall not initiate any assessment, lien, or collection action against Conservation Easement Lot 11 or its owner based solely on the conservation status of the lot. If the conservation easement is ever released, terminated, or modified to permit residential development, the Board shall promptly assess whether the assessment exemption remains warranted and, if not, shall seek the Member approval required to remove or modify the exemption under Article XIII, Section 3 of this Declaration.

Section 16 "Common Property"
'Common Property' has the same meaning as 'Common Area'. The two terms are used interchangeably, and any reference to 'Common Property' in this Declaration or the Bylaws shall be deemed a reference to 'Common Area'.

Section 17 "Tenant."
'Tenant' means one or more persons occupying a residential dwelling unit as a single household under a lease or rental agreement with the Owner of the Lot. This definition is applied in a non-discriminatory manner consistent with the Fair Housing Act and applicable Texas law, without regard to whether the occupants are related by blood, marriage, adoption, or otherwise. 'Tenant' does not include a contract purchaser, owner-occupant, or person with a legal or equitable ownership interest in the Lot.

Section 18 "Manager."
'Manager' means a professional property management company or individual engaged by the Association pursuant to Article III, Section 5 of this Declaration to assist in administering and managing the Association and its Common Area. A Manager acts solely as the agent of the Association under the direction of the Board.

Section 19 — "Firewise Committee."
'Firewise Committee' means the advisory committee appointed by the Board of Directors to advise on wildfire prevention, defensible space, and vegetation

management within the Properties and Common Area. The Firewise Committee's role and composition are determined by the Board.

Section 20 — "Fine Schedule."
'Fine Schedule' means the written schedule of fines and penalties adopted and maintained by the Board of Directors pursuant to Article XII, Section 4 of this Declaration, which establishes the specific dollar amounts applicable to violations of this Declaration, the Bylaws, and any rules and regulations of the Association.

Section 21 "Plat."
'Plat' means the recorded subdivision plat for Meadow Mountain Planned Unit Development No. II-A, filed in Volume 81, Pages 320–321, of the Plat Records of Travis County, Texas. All references throughout this Declaration to the "recorded plat of the Properties" or the "plat recorded in Volume 81, Pages 320–321" refer to the Plat as defined in this Section.

Section 22. Governing Document Hierarchy.

In the event of any conflict between the Association's governing documents, the following order of precedence controls: (1) applicable federal and Texas law; (2) this Declaration, as recorded and amended; (3) the Bylaws of the Association; (4) the Rules of Conduct adopted under Article VIII of the Bylaws; (5) design guidelines adopted by the ARC with Board approval; and (6) the Fine Schedule. No lower-ranked document may expand, restrict, or contradict a higher-ranked document. Any conflicting provision in a lower-ranked document is void to the extent of the conflict. The Board shall maintain and post current versions of all governing documents on the Association's website.

ARTICLE II - PROPERTY RIGHTS IN THE COMMON AREAS

Section 1. Owner's Easements of Enjoyment.
Every Owner has a right and easement of enjoyment in and to the Common Area. This right and easement is attached to and passes with title to every Lot, subject to the following:

(a) The Association, acting through its Board with appropriate Member approval, may dedicate or transfer all or any part of the Common Area to any public agency, authority, or utility on terms agreed to by the Members. No such dedication or transfer is effective unless an instrument signed by sixty-seven percent (67%) of the Members agreeing to the dedication or transfer has been recorded in the Official Public Records of Travis County, Texas.

(b) The Association may, under its Articles of Incorporation and Bylaws, borrow money to improve the Common Area and facilities, and may mortgage the Common Property as security for that obligation, provided that the rights of mortgage holders in the Common Property are subordinate to the rights of Owners under this Declaration.

(c) The Association may adopt, amend, and enforce reasonable rules and regulations governing use of the Common Area, provided such rules are consistent with this Declaration and the Bylaws and do not discriminate among Owners in their application.

Section 2. Delegation of Use.
An Owner may delegate the right of enjoyment to the Common Area and its facilities to family members, tenants, or contract purchasers who reside on the Owner's Lot, as permitted by the Bylaws and any rules adopted by the Board. A delegation does not expand the rights of the person receiving them beyond those of the Owner. The Owner remains responsible at all times for the conduct of persons to whom those rights have been delegated in connection with use of the Common Area.

Section 3. Owner's Use.
Owners' use of their Lot and the Common Area is subject to all Articles of this Declaration, including provisions on common scheme restrictions, architectural control, party walls, exterior maintenance, and all rules and regulations adopted by the Board. No Owner may use a Lot or the Common Area in a manner that is inconsistent with the residential character of the community or that infringes on the rights of enjoyment of other Owners.

ARTICLE III - MEMBERSHIP AND VOTING RIGHTS

Section 1. Mandatory Membership.
Every Owner of a Lot subject to assessment automatically becomes and remains a Member of the Association for as long as that ownership continues, without any additional act. Membership cannot be separated from ownership of any Lot subject to assessment. The Association must maintain a current roster of all Owners of record and their mailing addresses, and the Board must update the roster whenever notified of a change in ownership or mailing address.

Section 2. Voting Membership.
The Association has a single class of voting membership. Every Owner of a Lot is a Member and is entitled to one (1) vote for each Lot owned. When more than one person or entity holds an ownership interest in a Lot, all such persons or entities collectively share the membership and the single vote for that Lot. The vote must be exercised as the co-Owners agree among themselves, but no more than one (1) vote may be cast for any single Lot at any meeting or in any written action. Co-Owners who cannot agree on how to cast their single vote may, in the Board's discretion, be deemed to have abstained.

All Members have the same class of membership and the same voting rights, subject only to limitations expressly provided in this Declaration or the Bylaws, or imposed because of nonpayment of assessments.

Section 3. Non-Owner Residents.
Non-Owner residents, including guests, renters, lessees, and contract purchasers, are not members of the Association and have no right to vote in Association affairs. Non-

Owner residents are welcome to attend regular and special meetings of the Association, where they may present their views and suggestions and learn about Association concerns and activities. The Board may, in its discretion, provide a designated period at meetings for comments and input from non-Owner residents.

Section 4. Board Member Conflicts of Interest.
Each member of the Board of Directors has a fiduciary duty to the Association and all its Members. In furtherance of that duty:

(a) each Board member must promptly disclose to the full Board any direct personal financial interest that member has in any matter coming before the Board for decision, including any contract, transaction, enforcement matter, or expenditure in which that Board member or a member of that Board member's immediate family has a financial stake;

(b) a Board member with a disclosed conflict of interest must recuse himself or herself from the vote on the conflicted matter and must not attempt to influence the outcome of that vote;

(c) the Board must document all disclosed conflicts of interest in the minutes of the meeting at which the disclosure was made, including the nature of the conflict and the fact of recusal;

(d) no contract or transaction between the Association and any Board member, or any entity in which a Board member has a material financial interest, is void solely on account of the conflict, provided the conflict was disclosed, the interested Board member recused himself or herself from the vote, and the remaining disinterested Board members approved the contract or transaction in good faith; and

(e) the Board shall adopt a written Conflicts of Interest Policy, consistent with this Section, within one hundred eighty (180) days of the effective date of this Declaration, and shall make the policy available to all Members upon request.

Section 5. Management Company Authority and Oversight.
With approval of sixty-seven percent (67%) of all Members entitled to vote, the Board may engage a professional property management company ("Manager") to assist in the administration and management of the Association and its Common Area. Any such engagement is subject to the following:

(a) the Manager shall act solely as the agent of the Association and under the direction and supervision of the Board; the retention of a Manager does not relieve the Board of its fiduciary duties to the Members or of ultimate responsibility for the management of the Association;

(b) the scope of the Manager's authority must be defined in a written management agreement approved by the Board; the Manager may not take any action that exceeds the scope of authority delegated in that agreement;

(c) the management agreement must specify the term, compensation, scope of services, reporting obligations, and grounds for termination; all management agreements with a term of more than one year must be approved by a majority vote of the Board at a duly noticed meeting;

(d) the Board must review the Manager's performance at least annually and must retain the right to terminate the management agreement for cause upon reasonable written notice as specified in the agreement;

(e) the Manager shall have no authority to amend this Declaration, the Bylaws, or any rules and regulations of the Association, or to approve any matter that requires Member approval under this Declaration; and

(f) financial records, assessment accounts, and reserve funds must remain under the ultimate control of the Board regardless of any delegation to a Manager, and the Board must conduct or commission an independent financial review of Association accounts at least annually.

Section 6. Electronic Meetings and Voting.
Consistent with Texas Property Code § 209.0051 and applicable Texas Nonprofit Corporation Law, the Board and the Members may conduct meetings and votes by electronic means as follows:

(a) Board meetings may be conducted by telephone conference, video conference, or other electronic communication technology that allows all participating Board members to simultaneously hear and communicate with each other, to the extent permitted by the Bylaws and applicable Texas law;

(b) Member meetings may be conducted in person, by electronic means, or by a hybrid of in-person and electronic attendance; the Board shall establish procedures for electronic participation that allow participating Members to hear and be heard and to cast votes;

(c) the Board may adopt written ballot procedures for any matter subject to a Member vote, provided that all Members receive the same information about the matter being voted upon, the voting period is at least ten (10) days, and ballots are collected and counted in a manner that preserves the integrity and anonymity of the vote;

(d) electronic votes shall be subject to the same quorum, notice, and approval requirements as votes cast in person;

(e) the Board shall adopt written procedures for electronic meetings and electronic voting, consistent with this Section and applicable Texas law, and shall make those procedures available to all Members at least thirty (30) days before any meeting at which electronic participation is offered; and

(f) authentication of electronic ballots shall be accomplished by a method reasonably designed to verify that each ballot is cast by a Member entitled to vote.

Section 7. Board of Directors.

The Association is governed by a Board of Directors as defined in Article I, Section 7 of this Declaration. The Board shall consist of not fewer than three (3) and not more than seven (7) Directors as established by the Bylaws. Each Director must be an Owner in good standing (not delinquent in any assessment obligation) at the time of election and

throughout the Director's term. Elections of Directors shall be conducted by secret ballot of the Members as required by Texas Property Code § 209.00592. Board size, terms, nomination procedures, vacancies, and removal are governed by the Bylaws and by Texas Property Code §§ 209.00592 through 209.00595. Any Member in good standing is eligible to serve as a Director unless otherwise disqualified under the Bylaws or applicable Texas law.

Section 8. Annual Meeting of Members.

The Association shall hold an Annual Meeting of Members during the first quarter of each calendar year on a date designated by the Board. The Board shall provide all Members written notice not less than ten (10) days nor more than sixty (60) days before the meeting, stating the date, time, location, and agenda. At the Annual Meeting the Board shall present: (a) a report on the Association's activities; (b) the prior year's financial statements; (c) the current adopted budget and Annual Assessment; and (d) Board election results. Meeting procedures, quorum, and voting rules are governed by the Bylaws and Texas Property Code § 209.0051. Special meetings may be called as provided in the Bylaws.

Section 9. Open Meeting Rights of Members.

Consistent with Texas Property Code § 209.0051, all meetings of the Board shall be open to attendance by all Members. The Board shall provide all Members at least seventy-two (72) hours' advance written notice of every Board meeting, including the date, time, location or electronic access information, and proposed agenda, by posting on the Association's website or by electronic mail. Before the Board votes on any agenda item, Members present shall have a reasonable opportunity to speak on that item. The Board may establish reasonable time limits for owner comments but may not prohibit Member comments on agenda items before a vote. The Board may meet in closed executive session only for: (a) consultation with legal counsel on pending or threatened litigation; (b) personnel matters; (c) sensitive contract negotiations; and (d) privacy matters affecting individual owners. No binding action may be taken in executive session; all actions must be ratified in an open meeting. Detailed meeting procedures are governed by the Bylaws.

ARTICLE IV - COVENANT FOR MAINTENANCE ASSESSMENTS

Section 1. Creation of the Lien and Personal Obligation of Assessments.
Every Owner of any Lot, by accepting a deed to that Lot, covenants and agrees to pay to the Association:

(a) an Annual Assessment, payable in monthly installments or in other periodic installments as the Board determines; and

(b) Special Assessments for capital improvements and other purposes as described below.

All Annual Assessments and Special Assessments, together with interest, costs of collection, and reasonable attorney's fees, constitute a charge on the land and a

continuing lien upon the Lot against which each assessment is made, to the full extent permitted by law. Each assessment, together with interest, costs (including lien release fees), and reasonable attorney's fees, is also the personal obligation of the Owner at the time the assessment became due. The personal obligation for delinquent assessments does not pass to a successor Owner unless expressly assumed in writing. However, the Association's lien is not extinguished by a subsequent sale or transfer of the Lot, except as provided in Section 9 of this Article.

Section 2. Purpose of Assessments.
Assessments levied by the Association shall be used exclusively to: promote the recreation, health, safety, and welfare of residents in the Properties; improve, repair, replace, and maintain the Common Area and its improvements and facilities; administer and manage the Association; pay insurance premiums on policies maintained by the Association for the benefit of the Common Area and its Members; maintain Canyonside Trail as provided in Article V of this Declaration; and carry out any other obligations of the Association under this Declaration and the Bylaws.

Section 3. Maximum Annual Assessment.
The Board must establish the maximum Annual Assessment before the beginning of each fiscal year. The Board may increase the maximum Annual Assessment each year by not more than five percent (5%) above the maximum for the immediately preceding year without a membership vote.

(a) The maximum Annual Assessment may be increased above five percent (5%) by a vote of sixty-seven percent (67%) of the Members voting in person or by proxy at a meeting called for that purpose. Written notice of the meeting, stating the nature of the proposed increase, must be sent to all Members not less than ten (10) days nor more than fifty (50) days before the meeting date.

(b) The Board may set the Annual Assessment at any amount not exceeding the maximum established under this Section.

(c) Before the beginning of each fiscal year, the Board must prepare and adopt a budget and provide each Owner with written notice of the Annual Assessment amount for the coming year, together with a budget summary, within thirty (30) days after adopting the budget.

Section 4. Special Assessments for Capital Improvements.
In addition to Annual Assessments, the Association may levy a Special Assessment in any assessment year, applicable to that year only, to pay all or part of the cost of constructing, reconstructing, repairing, or replacing a capital improvement on the Common Area, including fixtures and personal property related to it.

Any such Special Assessment that, in the aggregate for a fiscal year, exceeds five hundred dollars ($500.00) per Lot, or such higher per-Lot cap as the Board may establish by resolution from time to time with thirty (30) days' prior written notice to all Members, requires the approval of sixty-seven percent (67%) of the Members voting in person or by proxy at a meeting called for that purpose. The Board may levy a Special Assessment not exceeding that per-Lot threshold without Member approval.

Written notice of any meeting called for Member approval of a Special Assessment must be sent to all Members not less than ten (10) days nor more than fifty (50) days before the meeting date.

Section 5. Notice and Quorum for Any Action Authorized Under Sections 3 and 4. Written notice of any meeting called to take action under Sections 3 or 4 must be sent to all Members not less than ten (10) days nor more than fifty (50) days before the meeting. The notice must describe the purpose of the meeting in enough detail to allow Members to make an informed decision.

At the first such meeting, Members or proxies entitled to cast sixty-seven percent (67%) of all votes of the membership constitute a quorum. If the required quorum is not present, another meeting may be called subject to the same notice requirement. The required quorum at that subsequent meeting is one-half (1/2) of the quorum required at the preceding meeting. No subsequent meeting may be held more than sixty (60) days after the preceding meeting. Actions taken at any meeting at which a quorum is present are valid and binding on all Members and Owners.

Section 6. Uniform Rate of Assessment.
Both Annual Assessments and Special Assessments must be set at a uniform rate for all Lots within the Properties and may be collected monthly or in other periodic installments as the Board determines. No Lot may be assessed at a higher or lower rate than any other Lot, except as expressly provided in Section 11 of this Article and in Article V about Canyonside Trail maintenance.

Section 7. Date of Commencement of Annual Assessments: Due Dates.
The Board must set the amount of the Annual Assessment against each Lot at least thirty (30) days before January 1 of each year for which the assessment is levied. Written notice of the Annual Assessment must be sent to every Owner subject to it.

The Board shall establish due dates for payment and apply them uniformly to all Owners. On written demand from any Owner or any person with a legal interest in a Lot, and for a reasonable charge, the Association must provide a written certificate signed by an officer of the Association stating whether assessments on a specified Lot are current or delinquent as of the certificate date.

Section 8. Effect of Nonpayment of Assessments: Remedies of the Association.
Any assessment not paid by the due date established by the Board under Section 7 is immediately delinquent. Upon delinquency, and subject to the notice requirements described below, the unpaid assessment, together with accrued interest and costs of collection, constitutes a lien on the Lot as provided in Section 1 of this Article.

Before filing a lien for delinquent assessments, the Association must provide the Owner with written notice sent by certified mail, return receipt requested, as required by Texas Property Code § 209.023. That notice must include all content required by § 209.023, and must at minimum: (1) state the total amount claimed due; (2) provide an itemized breakdown by category (delinquent assessments, accrued interest, administrative fees, and costs of collection); (3) state the method and address for payment; (4) state the date by which payment must be received to avoid lien filing; (5) inform the Owner of the right to cure; and (6) inform the Owner of the right to request a payment plan under §

209.0092 and Article IV, Section 14 of this Declaration. The Association shall not file a lien until the applicable cure period provided under Chapter 209 has expired without the delinquency being resolved.

If an assessment is not paid within thirty (30) days after the due date, the delinquent amount bears interest from the due date at the rate of ten percent (10%) per annum, or the maximum rate permitted by Texas law, whichever is less.
Following the expiration of the applicable notice and cure period and compliance with all requirements of Chapter 209 of the Texas Property Code, the Association may pursue one or more of the following remedies: (1) bring an action at law against the Owner personally obligated to pay the delinquent assessment; (2) foreclose the lien against the Lot as provided by law and subject to the limitations described below; or (3) pursue both remedies concurrently or consecutively. Any such action may include, in addition to the delinquent assessment and accrued interest, all reasonable costs of collection and attorney's fees as permitted by applicable law.

Regarding lien foreclosure, the Association may not foreclose an assessment lien on a residential property unless the total amount of delinquent assessments — excluding interest, attorney's fees, and costs of collection — exceeds two thousand five hundred dollars ($2,500), or the property is not the Owner's residential homestead, as required by Texas Property Code § 209.0091. Where judicial foreclosure is required under applicable law, the Association shall comply with those procedural requirements before proceeding.

Following receipt of full payment of all amounts secured by an assessment lien — including delinquent assessments, accrued interest, collection costs, lien filing fees, and reasonable attorney’s fees — the Association shall record a release of that lien in the Official Public Records of Travis County, Texas, within thirty (30) days and provide the Owner with a copy. Failure to timely record a release entitles the Owner to seek specific performance in any court of competent jurisdiction. No Owner may avoid liability for assessments by non-use of the Common Area or by abandoning the Owner’s Lot.

The Association shall at all times comply with the applicable requirements of Chapter 209 of the Texas Property Code in the exercise of any collection remedy, and nothing in this Section shall be construed to authorize any action inconsistent with those requirements. Consistent with Texas Property Code § 209.023(c), the Board shall adopt and maintain a written assessment collection policy describing the Association’s procedures for collecting delinquent assessments, and shall distribute that policy to all Members before initiating any collection action.

Section 9. Subordination of the Lien to Mortgages.
The assessment lien is subordinate to the lien of any first mortgage or first deed of trust constituting a first lien on any Lot. A sale or transfer of any Lot does not affect the assessment lien; the lien continues to encumber the Lot in the hands of any subsequent Owner. However, a sale or transfer of any Lot through mortgage foreclosure, or any proceeding in lieu of foreclosure (including a deed in lieu of foreclosure or a transfer at a

foreclosure sale under a deed of trust), extinguishes the assessment lien as to payments that became due before that sale or transfer. No sale or transfer releases the Lot from liability for assessments that become due after the sale or from the lien for those assessments. Extinguishment of the lien by mortgage foreclosure or similar proceeding does not release the delinquent former Owner from personal obligation and liability for those delinquent assessments.

Section 10. Exempt Property.
The following property subject to this Declaration is exempt from assessments, charges, and liens created under this Declaration:

(a) All property dedicated and accepted by any local governmental authority and devoted to public use; and Conservation Easement Lot 11, as defined in Article I, Section 15 of this Declaration, which is encumbered by a perpetual conservation easement held by the City of Austin, Texas (recorded March 14, 1984, Volume 08505, Page 00475, Travis County Official Public Records; also indexed as Instrument No. 2012141584TR), prohibiting all development of the lot. The assessment exemption for Conservation Easement Lot 11 is based on the restrictions imposed by that easement, which render the lot incapable of residential development and preclude it from deriving the same benefits from Association maintenance and governance services as residential Lots;

(b) All Common Area as defined in Article I, Section 4 of this Declaration; and

(c) All additional Common Area acquired through annexation or dedication under this Declaration.

Section 11. All Assessments Pro Rata.
No assessment against any Lot may be higher or lower than the assessment against any other Lot within the Properties, except for: (i) Special Assessments that, in the Board's judgment, are properly attributable to fewer than all Lots, as authorized under Section 4 of this Article and Section 4 of Article VII; and (ii) adjustments provided in the other sections of this Article.

Section 12. No Diminution or Abatement.
No reduction or abatement of assessments may be claimed by any Owner for inconveniences or discomfort arising from repairs or improvements to the Common Area or to any Lots, or from any action taken by the Association or any Owner to comply with any law, ordinance, or order of any governmental authority having jurisdiction over the Properties.

Section 13. Reserve Fund and Reserve Analysis.
The Board shall establish and maintain a Capital Reserve Fund as a segregated account of the Association, separate from the Association’s operating account. The Reserve Fund shall be used exclusively for the repair, replacement, and long-term maintenance of the Common Area infrastructure, including but not limited to roadways, retaining walls, drainage facilities, trails, gates, and other capital assets of the Association having a useful life of more than three (3) years.

The Board shall conduct Reserve Analysis annually prior to the annual meeting and shall update its underlying assumptions at that time. The analysis shall identify all major

capital components of the Common Area, estimate their remaining useful life and replacement cost, and recommend an annual Reserve Fund contribution sufficient to fund projected replacements and major repairs without the need for a Special Assessment. The Board shall include in the Annual Assessment a Reserve Fund contribution consistent with the most recent Reserve Study recommendation, or shall provide Members with a written explanation of any deviation from that recommendation at the time of annual budget adoption.

The Reserve Fund balance and year-to-date contributions shall be disclosed in the Association's annual financial report provided to all Members. Monies in the Reserve Fund may not be borrowed or transferred to the operating account except by a two-thirds (2/3) vote of the Board, with written notice to all Members within thirty (30) days of such transfer.

Section 14. Assessment Payment Plans.
Consistent with Texas Property Code § 209.0093, the Association shall offer a delinquent Owner a reasonable payment plan before filing an assessment lien. The following minimum terms apply to any payment plan offered by the Association:

(a) the payment plan shall allow the Owner to pay the delinquent assessments, accrued interest, and administrative costs in equal monthly installments over a period of not less than three (3) months and not more than twelve (12) months, as agreed between the Owner and the Board;

(b) interest shall accrue on the unpaid balance during the payment plan period at the rate specified in Article IV, Section 8 of this Declaration, or such lower rate as the Board may establish by resolution;

(c) the Owner must make all installment payments by the due dates specified in the payment plan agreement;

(d) if the Owner fails to make any installment payment within fifteen (15) days of its due date, the payment plan is void, the full remaining balance becomes immediately due, and the Association may proceed with lien filing and other collection remedies without further notice;

(e) the Board may require the Owner to execute a written payment plan agreement as a condition of deferring lien filing; and

(f) an Owner who fulfills a payment plan in full is not subject to a lien filing for the delinquency covered by that plan.

The Board may adopt supplemental payment plan policies consistent with this Section and applicable Texas law.

ARTICLE V - MAINTENANCE BY AND SERVICES OF THE ASSOCIATION

Section 1. Common Area.

The Association must maintain the lands and improvements of all Common Area in a clean, safe, and attractive condition consistent with the character of a well-maintained planned residential community. This maintenance includes, but is not limited to: mowing and care of turf areas; pruning and care of trees and shrubs; maintenance and repair of trails, walkways, and retaining walls; maintenance and repair of fencing and gates within the Common Area; maintenance of drainage facilities within the Common Area; and maintenance and operation of any other improvements within the Common Area for the common benefit of Owners. The Association may engage such contractors, agents, and employees as necessary to discharge its maintenance obligations.

Section 2. Willful or Negligent Acts.
If maintenance or repair of the Common Area is caused by the willful or negligent act or omission of any Owner, that Owner's family members, guests, invitees, tenants, or contract purchasers, the Association shall add the reasonable cost of that maintenance or repair as a Special Assessment to the Owner's normal Annual Assessment. Before imposing any such Special Assessment, the Association must provide the Owner with written notice of the alleged damage and an opportunity to cure or contest the claim under the dispute resolution procedures in Article XII of this Declaration. Any such Special Assessment is subject to the same lien and collection remedies as Annual Assessments.

Section 3. Maintenance of Canyonside Trail.
Canyonside Trail is the primary and is the sole means of vehicular ingress and egress to and from the Properties covered by this Declaration. The portion of Canyonside Trail that is located outside the entrance of Meadow Mountain Property Owners Association No. II-A, Inc. ("MMPOA II-A") and in common with Meadow Mountain Property Owners Association No. I, Inc. ("MMPOA I"), is subject to shared maintenance by MMPOA I and MMPOA II-A.

The Association must cooperate with MMPOA I in coordinating Canyonside Trail maintenance activities and in ensuring that maintenance is performed in a timely and cost-effective manner for the benefit of all property owners who use and benefit from the shared road.

Because the Owners of Lots within this Association share in the use and benefit of Canyonside Trail, each Owner of any Lot within the Properties, by accepting a deed to that Lot, covenants and agrees to pay to the Association, in addition to the amounts required by Article IV, a pro-rata share of all costs associated with maintaining that portion of Canyonside Trail, but only to the extent that the Annual Assessment provided for in Article IV fails to fully provide or pay for any such costs in any given fiscal year.

Each Owner's pro-rata share of Canyonside Trail maintenance costs shall be determined by the ratio between the number of residential units established or proposed on that Owner's Lot within MMPOA II-A and the sum of:

(i) the total number of Lots subject to the jurisdiction of Meadow Mountain Property Owners Association No. I, Inc.; and

(ii) the total number of Lots covered by this Declaration.

The Board may, in its reasonable discretion, adjust this allocation formula if the distribution of use and benefit of Canyonside Trail among the respective property owners' associations changes materially, provided that any such adjustment is applied in a manner consistent with the relative use and benefit derived by the respective Lots.

Each Owner's share of Canyonside Trail maintenance costs may be assessed and billed by the Association at any time, but not more frequently than semi-annually. The Board must provide each Owner with written notice of the amount of such assessment at least thirty (30) days before the payment due date. Each such assessment for Canyonside Trail maintenance, together with interest at the rate of ten percent (10%) per annum from the date due, all costs of collection, and reasonable attorney's fees, constitutes a charge on the land and a continuing lien upon the property against which it is made, to the full extent permitted by Texas law, in the same manner and subject to the same terms and conditions as Annual Assessments under Article IV of this Declaration. Each such assessment, together with interest, costs, and reasonable attorney's fees, is also the personal obligation of the Owner of that property at the time the assessment fell due. The lien and personal obligation provisions of Article IV, including Sections 1, 8, and 9 of that Article, apply fully to assessments levied under this Article V.

If any dispute arises between the Association and MMPOA I about the allocation, amount, or payment of Canyonside Trail maintenance costs, the Board may engage in good-faith negotiations with the Board of MMPOA I and, if necessary, submit the dispute to mediation or arbitration under the procedures in Article XII of this Declaration, as applicable, or other dispute resolution procedures as the parties may mutually agree upon. No Owner of a Lot within MMPOA II-A is released from the obligation to pay a pro-rata share of Canyonside Trail maintenance costs because of any dispute between the Association and MMPOA I. Those obligations continue in full force and effect until finally resolved.

Section 4. Association Insurance.

Consistent with Texas Property Code § 209.014, the Association shall obtain and maintain, at minimum, the following insurance coverages:

(a) Property insurance on all Association-owned improvements in the Common Area at not less than full replacement cost, or such lesser amount as the Board determines commercially reasonable after consulting an insurance professional;

(b) Commercial general liability insurance covering the Common Area and Association activities, with limits of not less than $1,000,000 per occurrence and $2,000,000 aggregate, or such higher amounts as the Board determines appropriate;

(c) Directors and officers liability (D&O) insurance covering the Association's Directors, officers, and committee members against claims arising from their service; and

(d) A fidelity bond or crime coverage for all persons with access to Association funds, in an amount not less than three months' assessments or $50,000, whichever is greater.

The Board shall review all Association insurance coverages annually and shall make evidence of current coverages available to any Member upon request. Nothing in this Section limits each Owner's obligation to maintain homeowner's insurance on the Owner's Lot and dwelling as required by Article XIII, Section 12 of this Declaration.

ARTICLE VI - ARCHITECTURAL AND ENVIRONMENTAL MANAGEMENT

Section 1. Architecture Review Committee.
The Board must appoint an Architecture Review Committee composed of not fewer than three (3) persons to review and act on all applications for improvements proposed by any Owner. The Architecture Review Committee handles all architectural, landscaping, grading, and environmental review functions. The Committee may include persons with special expertise in architecture, engineering, landscaping, or related fields who are not Members of the Association. The duration of each appointment is determined by the Board.

An Owner may submit a preliminary set of plans for comment and non-binding review by the Architecture Review Committee as soon as practical after developing a concept for the improvement. Each Owner must submit two (2) complete final sets of plans and specifications for each proposed improvement to the Architecture Review Committee for its review and written approval before beginning construction or installation.

The Architecture Review Committee must issue its written decision within forty-five (45) days of acknowledged receipt of the two (2) final sets of plans. For purposes of this Section, "acknowledged receipt" means the date on which the Architecture Review Committee confirms in writing that it has received a materially complete submission. If the Architecture Review Committee determines that a submission is materially incomplete, it must notify the submitting Owner in writing within ten (10) business days of receipt, specifying the deficiencies. The forty-five (45) day clock does not begin until the Owner submits a revised, complete submission, which the Architecture Review Committee must acknowledge within five (5) business days of receipt. A determination of incompleteness does not constitute a disapproval of the plans. The written decision must either approve the plans and specifications as submitted, approve them with conditions, or disapprove them. In the case of disapproval, the decision must specifically identify the features or aspects of the plans that caused the disapproval and, where practicable, specify modifications that would make the plans acceptable. Approval may be conditioned upon completing construction within a specified period or upon compliance with specific design requirements. All decisions are made by majority vote of the members of the Architecture Review Committee. If the Architecture Review Committee fails to act within the forty-five (45) day period following acknowledged receipt of a complete submission, the proposed improvement is deemed approved, provided the Owner has delivered a written reminder notice to the Board upon expiration of that period.

Section 2. Extent of Architecture Review Committee's Authority.
The Architecture Review Committee has full authority, before granting approval, to require the relocation of proposed structures, landscaping, and other improvements shown on the submitted plans. The Committee may also require modifications in the appearance, materials, colors, design, or placement of proposed improvements. Such requirements may be based on the aesthetic judgment of the majority of the Committee regarding harmony with existing community improvements, impervious cover guidelines established under City of Austin ordinances or the restrictive covenants of the Properties, drainage and grading considerations, preservation of significant trees and natural features, and compliance with the setback and other dimensional requirements of this Declaration. The Architecture Review Committee's decision, made in good faith and following the procedures in this Declaration, is final and binding on the Owner as to the submitted plans, subject to the Owner's right to resubmit revised plans for further review.

Section 3. Association Approval of Improvements and Alterations.
Maintaining environmental and architectural harmony is essential to preserving and enhancing the value of the Lots and the functioning of the residential community. No improvements or alterations of any kind may be erected, constructed, placed, installed, or maintained on any Lot without the prior written approval of the Architecture Review Committee appointed by the Board, in accordance with the Association's governing documents, rules, regulations, standards, and guidelines.
The terms "improvements" and "alterations" include, but are not limited to: erecting any structure, including additions to or alterations of any existing building; constructing any detached building; constructing or altering privacy walls, fences, storage buildings, tool sheds, kennels, greenhouses, or other buildings for the care of animals; moving any structure from another location onto any Lot; grading, scraping, excavating, or otherwise rearranging the surface of any Lot in a way that alters existing grades or drainage patterns; constructing any driveway, alleyway, walkway, entryway, patio, access structure, or similar improvement; altering or replacing any exterior surface, including repainting any previously painted surface in a color other than the previously approved color, and painting or finishing any previously unpainted or unfinished surface; planting, replanting, or significantly rearranging plant life on the Lot; installing window draperies, coverings, or treatments visible from another Lot, the Common Area, or public or private streets; and installing rainwater harvesting equipment, solar installations, religious displays, flagpoles, flag mounts, awnings, or any other alteration that changes the exterior appearance of a Lot.
No improvement or alteration may be located or placed, and no holes or penetrations may be made, on Common Area or property owned, maintained, or controlled by the Association without the Association's advance written consent.

Section 4. Grading, Excavation and Runoff Control Plans.
Grading, excavation, and runoff control plans must accompany all architectural plans submitted to the Architecture Review Committee for any improvement that involves disturbing existing grades, removing vegetation, or creating impervious cover. Such plans must include: a description of all proposed cuts and fills; the volumes and disposal methods for all excavated material; plans for controlling stormwater runoff and erosion

during construction; and plans for managing post-construction stormwater runoff. All such plans must comply with applicable City of Austin and Travis County regulations governing grading, drainage, and erosion control. The Architecture Review Committee must condition its approval on compliance with all applicable regulatory requirements. No grading or excavation may begin on any Lot before written approval from the Architecture Review Committee is received.

Section 5. Landscaping Plan.
A landscaping plan must accompany any architectural plans submitted to the Architecture Review Committee for any improvement requiring its approval. The landscaping plan must include: a description of the overall landscaping concept for the affected Lot or portion of it; specific information about the proposed treatment of all existing trees with trunks measuring ten (10) inches or more in diameter when measured four (4) feet above existing ground level; a description of proposed plant materials, ground covers, and irrigation; and proposed measures for protecting existing significant trees and vegetation during construction. The Architecture Review Committee may require the preservation of significant trees and native vegetation as a condition of approval, and may require planting of specific species or use of drought-tolerant and native plant materials consistent with the Central Texas climate and the character of the community.

Section 6. Building Encroachment Easements.
No construction of any kind may exceed the limits of dedicated easements on adjacent Lots or Common Areas, and no construction may encroach beyond the boundary lines of the Lot on which it is located, except as expressly authorized by an easement granted under Article XI of this Declaration or as shown on the recorded plat of the Properties. The maximum limit of any encroachment is the limit shown on the recorded plat of the Properties filed in Volume 81, Pages 320-321, of the Plat Records of Travis County, Texas. This prohibition applies to all fences or walls, whether privacy or otherwise, and to all other structures and improvements.

Section 7. Minimum Floor Area and Exterior Walls.
Any residence constructed on any Lot must have not less than one thousand two hundred (1,200) square feet of enclosed, heated, and air-conditioned living area, exclusive of open or screened porches, terraces, patios, driveways, carports, and garages. All exterior walls of any residence must be constructed of materials consistent with the character of the community and harmonious with surrounding structures, as determined by the Architecture Review Committee in its review and approval of construction plans. The Architecture Review Committee may require the use of specific exterior materials, colors, and finishes consistent with the architectural standards of the community.

Section 8. Setbacks.
No building or structure may be located on any Lot closer to the front Lot line, rear Lot line, or any side Lot line than the minimum building setback lines shown on the recorded plat of the Properties or as required by applicable City of Austin and Travis County regulations, whichever is more restrictive. For purposes of this Section, eaves, steps, and open porches are not considered part of the building for setback measurement purposes. However, this exception does not permit any portion of a building on any Lot

to encroach upon another Lot or Common Area in violation of this Declaration. Any question about the interpretation or application of setback requirements under this Section must be submitted to the Architecture Review Committee for determination before construction begins.

Section 9. Easements.
Easements for the installation, maintenance, repair, and replacement of utilities, drainage facilities, and other infrastructure are reserved as shown on the recorded plat of the Properties and as may be established under Article XI of this Declaration. No Owner may construct any building, structure, or improvement within any such easement area without the prior written approval of the Architecture Review Committee and any applicable utility or governmental authority. No utility company, water district, municipal utility district, political subdivision, or other authorized entity using those easements shall be liable for any damage to shrubbery, trees, flowers, fencing, or other property of the Owner within any such easement, provided that such entities use reasonable care in exercising their easement rights and restore the surface of the easement area as closely as practicable to its prior condition after completing any work.

Section 10. Construction Completion.
With reasonable diligence, and in all events within twelve (12) months from the commencement of construction of any dwelling or other improvement requiring Architecture Review Committee approval (unless prevented by war, civil disorder, natural disaster, governmental action, labor strikes, extraordinary material shortages, or other force majeure events beyond the Owner's reasonable control), the exterior finish of such dwelling or improvement must be completed. This includes roofing, exterior wall cladding, exterior painting or finishing, windows, and exterior doors. All temporary structures, equipment, materials, and debris associated with construction must be removed from the Lot and the Common Area within that period. Failure to complete construction within the time required by this Section constitutes a violation of this Declaration subject to enforcement by the Association under Article XII.

Section 11. General Maintenance.
Each Owner must maintain and care for all trees, plants, turf, and foliage on the Owner's Lot, including regular mowing of lawn areas, pruning of trees and shrubs, removal of dead or diseased vegetation, and control of weeds and invasive plant species. Each Owner must keep the Lot and all improvements on it in conformity with the maintained condition and standards of the community. All portions of the Lot visible from neighboring property or from the Common Area must always be kept in a neat, clean, and well-maintained condition.

The following specific landscaping standards apply to all Lots:

(a) General maintenance and care:

- (i) Grass areas must be regularly mowed.
- (ii) Weeds must be removed.
- (iii) Plants must be trimmed.
- (iv) Beds must be kept weed-free.

(v) Borders must be edged.

(vi) Plants may not encroach on public sidewalks or roadways.

(vii) Tree branches must be trimmed to a height of at least eight feet above ground level if near any roadway or sidewalk.

(viii) Perennials that die during the winter must be cut back to remove dead material by early spring;

(ix) Ornamental grasses and other flowering perennials that go dormant in winter must be trimmed during early spring to ensure plant health.

(b) For public safety, it is recommended that:

(i) no plant with thorns, spines, or sharp edges be placed within three feet of public sidewalks or roadways; and

(ii) no border or large rocks exceeding twelve inches in diameter be used on strips between a public sidewalk and the street curb.

(c) Artificial Turf. Artificial turf is considered "impervious cover" by the City of Austin and is regulated around Protected and Heritage Trees. For all other installations, the following requirements apply:

(i) Any Lot is limited to a maximum of 70% artificial turf coverage across front, sides, and rear yards combined. Front yard areas must retain a minimum of 30% of overall square footage as organic plant material (planter beds, rock beds, mulch beds, bushes, shrubs, or similar).

(ii) Artificial turf must be made of Polyethylene and have a minimum face weight of 60 oz. with a minimum 20 oz. weight permanent backing. Color must be consistent with the geographic area, using a blended, multi-color monofilament fiber with a minimum pile height of 1.5 inches.

(iii) Professional installation is required and must include a weed barrier and a properly prepared aggregate base for drainage.

(iv) Artificial turf must be cleaned as necessary and periodically groomed to maintain its appearance and aesthetic properties.

(v) Artificial turf must be replaced if there are signs of damage, lifting, unevenness, worn areas, fading, or deterioration.

Regardless of the foregoing general maintenance obligation, no Owner may cut, remove, injure, or destroy any tree on any Lot that has a trunk diameter of ten (10) inches or greater when measured four (4) feet above existing ground level, without the prior written approval of the Architecture Review Committee. Any such approval shall be conditioned upon compliance with applicable City of Austin heritage tree and tree preservation ordinances. The Architecture Review Committee shall coordinate its review with applicable municipal requirements.

ARTICLE VII - PRIVACY WALLS AND FENCES

Section 1. General Rules.
Some residences on Lots within the Properties were built with privacy walls and fences adjoining another Lot, either by the original builder or by subsequent Owners with Architecture Review Committee approval. Such privacy walls and fences are subject to this Article VII. This Article runs with the land as a covenant for the mutual benefit and burden of all Owners of Lots sharing such privacy walls or fences.

Section 2. Destructive Acts.
Each Owner of a residence with a shared privacy wall or fence covenants and agrees not to do anything, directly or indirectly, to disturb the structural integrity, support, or weatherproofing of that shared wall or fence. This prohibition includes penetration, excavation adjacent to the wall's foundations, attachment of heavy objects, application of harmful chemicals, or similar acts.

Any Owner, resident, or other person for whom an Owner is responsible who causes damage to or diminishment of the structural integrity of a shared privacy wall or fence is personally liable for the full cost of restoring it to its prior condition and for all other costs or expenses, including reasonable attorney's fees incurred by the non-responsible Owner in enforcing this provision. Restoration must be performed promptly, using materials and workmanship of equal or better quality to the original construction.

Section 3. Damage or Injury Not Caused by Either Owner.
If damage or injury to a shared privacy wall or fence is caused neither by either Owner sharing that wall or fence nor by any resident, guest, invitee, tenant, or contract purchaser of either Owner, but rather by external causes (including acts of God, third-party trespassers, or casualty events), then the costs of restoration and all other expenses reasonably incurred in connection with repair shall be borne equally by both Owners sharing the wall or fence. This applies except to the extent that insurance proceeds from policies maintained by either Owner or by the Association offset such costs. Each Owner must cooperate with the other and with the Association in submitting claims to applicable insurers and in coordinating the restoration work.

Section 4. Sharing of Repair and Maintenance.
The cost of reasonable repair and maintenance of a privacy wall or fence shared between two adjoining Lots, where that need is caused by ordinary wear, weathering, or passage of time rather than by the fault of either Owner, shall be shared equally by both Owners who benefit from and use the wall or fence. Each Owner must promptly notify the other Owner and the Board upon becoming aware of any condition of a shared privacy wall or fence that requires repair or maintenance. Neither Owner may undertake repairs to a shared privacy wall or fence without first giving reasonable advance notice to the other Owner, except in emergencies requiring immediate action to prevent further damage or injury.

Section 5. Application.
This Article VII applies to all privacy walls and fences located on or within six (6) inches of the boundary lines between adjoining Lots within the Properties. To be clear, this Article applies regardless of whether such a privacy wall or fence was constructed

before or after the effective date of this Declaration, provided it was constructed with appropriate approval as required by the governing documents at the time of construction. This Article does not apply to fences or walls located entirely within the interior of a single Lot and not sharing a common boundary with any adjoining Lot.

Section 6. Dispute Resolution.
Any dispute between adjoining Owners about a shared privacy wall or fence—including disputes about responsibility for damage, allocation of repair costs, scope of necessary repairs, or how repairs shall be conducted—is subject to the dispute resolution procedure in Article XII, Sections 1 and 2 of this Declaration before either Owner may file any court action. The arbitration or mediation procedures in those Sections apply fully to disputes under this Article VII. If a dispute is submitted to arbitration, the arbitrator has authority to determine responsibility for damage, allocate repair costs, and order specific performance of the maintenance and restoration obligations in this Article.

ARTICLE VIII - PERMITTED USES AND RESTRICTIONS

Section 1. General Restrictions.
All Lots within the Properties must be used solely for single-family residential purposes. No Lot may have more than one (1) residential dwelling unit constructed or maintained on it.

Exception: The incidental use of a portion of a dwelling unit as a home office, studio, or workspace is permitted if it does not generate commercial traffic to the Lot, does not involve the employment of non-resident personnel on the Lot, and does not alter the residential character of the Lot.

Exception — In-Home Health Care: The provision of in-home health care, personal care, and related support services within a dwelling unit is a permitted residential use and is not deemed a commercial or business purpose under this Declaration. This exception applies to:

(a) visiting health care professionals, including licensed nurses, physical therapists, occupational therapists, speech therapists, home health aides, hospice workers, and similar licensed or certified caregivers who come to the Lot to provide services to a resident;

(b) a live-in caregiver, attendant, or family member who resides in the dwelling primarily for the purpose of providing care to a resident who has a disability, chronic illness, or age-related need; and

(c) services provided through a licensed home health agency or hospice organization operating under Texas Health and Safety Code Chapter 142 or applicable federal law. In-home health care services permitted under this Exception must:

(i) be provided primarily to residents of the dwelling and not as a general clinic, office, or facility open to the public;

(ii) not generate sustained commercial traffic inconsistent with the residential character of the neighborhood;

(iii) not result in exterior signage, equipment, or modifications that alter the residential appearance of the Lot; and

(iv) comply with all applicable City of Austin and Travis County regulations.

The Association shall provide a reasonable accommodation to any Owner or resident who requires modification of any Association rule or practice to allow in-home care services for a person with a disability, as required by the Fair Housing Act, the Americans with Disabilities Act, and applicable Texas law.

Reasonable Modifications for Persons with Disabilities: In addition to the right to a reasonable accommodation of Association rules, any Owner or Tenant with a disability has the right under the Fair Housing Act (§ 3604(f)(3)(A)) to make reasonable structural modifications to the dwelling at the Owner's or Tenant's expense as necessary to afford full enjoyment of the premises. Such modifications may include, without limitation, installation of grab bars, ramps, widened doorways, accessible fixtures, or other improvements necessary for a person with a disability. The Association shall not deny a modification solely on the basis of ARC approval requirements, provided: (a) the modification will not structurally compromise the dwelling or Common Area; (b) the Owner or Tenant provides reasonable advance written notice to the Board; and (c) the Owner or Tenant agrees, where reasonable, to restore the premises upon vacating. Requests involving structural changes to the exterior or Common Area require Board approval, which shall not be unreasonably withheld or delayed. The Board shall respond to any written modification request within fourteen (14) days.

Exception — In-Home Child Care Worker: The employment of a nanny, au pair, babysitter, or other in-home childcare worker who comes to the dwelling to care for the children of the Owner or resident is a permitted residential use and is not deemed a commercial or business purpose under this Declaration. This exception permits only the provision of childcare services to the children of the household by an individual employed by or engaged by the Owner or resident for that purpose. It does not permit the dwelling to be operated as a daycare facility, family home daycare, group daycare home, or any other childcare operation serving children of persons other than the Owner or resident, whether licensed or unlicensed. The employment of an in-home childcare worker under this Exception must not generate traffic, parking, or activity inconsistent with the residential character of the neighborhood, and must not result in any exterior signage or modifications to the Lot.

Section 2. Noxious Uses.

No Lot or improvement on a Lot may be used in any manner that disturbs the neighborhood or occupants of any adjoining property, constitutes a nuisance under Texas law, or violates any applicable public law, ordinance, or regulation. No Lot or improvement may be used for any purpose that creates or results in the emission of objectionable, offensive, or noxious odors, dust, gas, fumes, or other materials into the common air or onto adjoining properties. Owners must take all reasonable steps to abate any noxious condition on their Lots promptly upon becoming aware of it, whether or not the Association or another Owner has given notice.

Section 3. Use of Common Area.
The Common Area may be used for park, recreational, social, and access purposes, established utility easements, Association-approved driveways installed and maintained at Owners' expense, and other purposes directly related to authorized residential property uses. The Board may adopt reasonable rules and regulations governing use of the Common Area by Owners, residents, guests, and invitees, provided such rules are uniformly applied and do not unreasonably restrict Owners' use and enjoyment of the Common Area. No Owner or resident may use the Common Area in a manner that unreasonably interferes with the rights of other Owners and residents to its quiet use and enjoyment.

Before trimming or clearing brush on Common Areas, an Owner must contact the Association's Firewise Committee and must also receive prior written approval from the Board.

Section 4. Animals.
No animals or birds other than a reasonable number of commonly recognized household pets may be kept, maintained, or permitted on any Lot or the Common Area. Any pets must be kept solely as domestic pets and not for breeding, raising, sale, or any commercial purpose. Notwithstanding any other provision of this Section, nothing herein shall be construed to prohibit or restrict an Owner or resident from keeping a service animal or assistance animal as defined under the Americans with Disabilities Act, the Fair Housing Act, the Texas Human Resources Code, or other applicable federal or state law. The Association shall provide reasonable accommodation for service animals and assistance animals upon proper request and documentation as required by applicable law, regardless of any weight, breed, or other characteristic limitation that would otherwise apply under this Section.

No animal or bird on any Lot or the Common Area may be allowed to make an unreasonable amount of noise, become a nuisance to neighboring Owners or residents, or roam unsupervised in the Common Area or on the Lots of other Owners. No structure for the care, housing, or confinement of any animal or bird may be constructed or maintained on any Lot in a location or manner visible from neighboring property.

On written request from any Owner, the Board has authority to conclusively determine, in its sole and absolute discretion, whether a particular animal or bird is a generally recognized household or yard pet, whether a particular animal or bird has become a nuisance, or whether the number of animals or birds on any Lot is reasonable. The Board must conduct any such determination in compliance with applicable notice and hearing requirements.

Section 5. Antennas and Signals.
No antenna or other device for transmitting or receiving television, radio, satellite, broadband wireless, or other electromagnetic signals—including, without limitation, small cell antennas, distributed antenna systems, satellite internet terminals (such as low-earth-orbit satellite broadband dishes), and private wireless access points or repeaters—may be erected, used, or maintained on any Lot—whether attached to a building or otherwise—without the prior written approval of the Architecture Review Committee. This restriction does not apply to the extent preempted by applicable federal

law, including Federal Communications Commission rules governing over-the-air reception devices (OTARD, 47 C.F.R. § 1.4000), which rules shall govern the extent to which any such device is exempt from this Section. The Board must maintain written design guidelines for the placement, screening, and maintenance of permitted devices consistent with applicable federal preemption standards.

No radio, television, or other electromagnetic signals may originate from any Lot in any manner that interferes with reception of such signals on any other Lot. The Board must establish reasonable written guidelines for the placement, screening, and maintenance of permitted antennas and reception devices, consistent with applicable federal and state law.

Section 6. Temporary Occupancy.
No trailer, basement of any incomplete building, tent, shack, garage, barn, recreational vehicle, or any other temporary building or structure may be used at any time as a residence—temporary or permanent—on any Lot. Temporary buildings or structures used exclusively during approved construction, repair, or remodeling of a dwelling on any Lot or in the Common Area, and approved as part of the construction plans submitted to the Architecture Review Committee, are permitted only for the duration of the approved construction period and must be removed immediately upon completion of the construction for which they were approved, and in all events within the time period specified in Article VI, Section 10 of this Declaration.

Section 7. Trailers, Boats and Motor Vehicles.
No mobile home, motor home, travel trailer, truck camper, boat trailer, utility trailer, or any other trailer, boat, watercraft, recreational vehicle, or inoperable motor vehicle of any type may be kept, placed, maintained, constructed, reconstructed, or repaired upon any Lot, Common Area, or private driveway within the Properties in any manner or location visible from any neighboring property or public street. Exceptions: this Section does not apply to emergency vehicle repairs of brief duration, nor to temporary construction shelters or facilities maintained exclusively during and used solely in connection with construction of any improvement approved by the Architecture Review Committee.

Campers, trailers, motor homes, and boats may be kept in such designated parking areas as the Board may designate by written notice to all Members. No motor vehicle of any type, whether operable or not, may be subjected to major mechanical reconstruction or bodywork upon any Lot, Common Area, or private driveway in any manner visible from any neighboring property or public street.

Section 8. Nuisances.
No rubbish, debris, junk, construction materials, discarded furniture, or other waste of any kind may be placed, stored, or allowed to accumulate upon or adjacent to any Lot or Common Area. No offensive odors may arise from any such property so as to render it unsanitary, unsightly, offensive, or detrimental to the value or enjoyment of any other property in the vicinity. No nuisance may exist or operate on any Lot or in the Common Area in violation of applicable law or these restrictions.

No exterior speakers, horns, whistles, bells, or other sound devices of any kind—except security devices used exclusively for security purposes and not directed toward

neighboring properties—may be located, used, or placed on any Lot or in the Common Area in a manner that projects sound to neighboring Lots or to the Common Area.

Section 9. Repair of Buildings.
No building or structure on any Lot or in the Common Area may be allowed to fall into disrepair or deterioration inconsistent with the maintained character of the community. Every building and structure must at all times be kept in good condition and repair, and must be adequately painted, stained, or otherwise finished in a manner consistent with the original appearance and character of the structure and with the architectural harmony of the community as a whole. Any Owner who allows a building or structure on the Owner's Lot to fall into disrepair is subject to enforcement action by the Association under the procedures in Article XII of this Declaration, including the Association's right to make necessary repairs at the Owner's expense following those procedures.

Section 10. Trash Containers and Collection.
No garbage, refuse, or trash may be placed or kept on any Lot or in the Common Area except in closed, covered containers of a type, size, and style approved by the Board and consistent with applicable municipal ordinances. Such approval may include requirements that containers be disposable or of a particular color or design. Garbage or trash containers must not be maintained in a location visible from neighboring property or from any public or private street or common roadway, except to make them available for collection on designated collection days, and then only for the shortest time reasonably necessary for collection. Containers must be returned to their customary stored location no later than the end of the collection day. This Section is subject to the rights created in Article IX, Section 2 of this Declaration.

Section 11. Clothes Drying Facilities.
Outside clotheslines and laundry-drying equipment are subject to the limitations of Texas Property Code § 202.0165, which restricts what a property owners' association may prohibit with respect to such equipment. Subject to that statute and without limiting any rights afforded thereunder, the Association may impose reasonable restrictions on the location, screening, and aesthetics of clotheslines and laundry-drying equipment to the extent permitted by applicable law. Equipment that is fully screened from view from neighboring properties, from the Common Area, and from any public or private street satisfies the intent of this Section. No Owner may permit clothing, linens, or other items to be draped over or hung from fences, walls, railings, or other exterior structures in a manner visible from neighboring property, the Common Area, or any public or private street. The Association shall not enforce any provision of this Section to the extent it conflicts with Texas Property Code § 202.0165.

Section 12. Sidewalk Encroachment.
No tree, shrub, hedge, vine, or planting of any kind on any Lot or in the Common Area may overhang, encroach upon, or obstruct any sidewalk, trail, walkway, or other pedestrian way from ground level to a height of seven (7) feet without the prior written approval of the Architecture Review Committee. Owners must trim and maintain all vegetation on their Lots to prevent such encroachment. The Association must maintain all vegetation within the Common Area in a manner that prevents sidewalk or pathway encroachment. Any vegetation that encroaches in violation of this Section, following notice to the responsible Owner and failure to cure within the time specified by the

Board, may be trimmed or removed by the Association at the responsible Owner's expense as a Special Assessment.

Section 13. Right of Entry for Inspection.
During reasonable hours and upon reasonable advance notice to the Owner or resident where practicable, any authorized member of the Architecture Review Committee, any member of the Board, or any other authorized representative of the Association has the right to enter and inspect any Lot or the Common Area to determine whether this Declaration is being complied with. Such persons are not guilty of trespass by reason of such entry. In emergencies posing a threat of immediate harm to persons or property, the Association may enter a Lot without prior notice but must notify the Owner as promptly as practicable after entry. The right of entry must be exercised in a reasonable and non-disruptive manner and must not unreasonably interfere with the Owner's or resident's quiet enjoyment of the Lot.

Section 14. Mineral Exploration.
No Lot or Common Area may be used in any manner to explore for or to remove any water, oil, or other hydrocarbons, minerals of any kind, gravel, earth, or any earth substance of any kind, whether by drilling, excavation, surface mining, or any other means. No Owner may enter into any lease, license, or other agreement authorizing mineral exploration or extraction on any Lot or the Common Area. This restriction applies to the surface and subsurface of all Lots and the Common Area. It does not limit any Owner's mineral rights under Texas law except to the extent that exercising those rights would require any surface disturbance or entry onto any Lot or the Common Area.

Section 15. Machinery and Equipment.
No machinery or equipment of any kind may be placed, operated, or maintained upon or adjacent to any Lot or Common Area, except such machinery or equipment as is customarily used in Travis County, Texas, in connection with the ordinary use, maintenance, or approved construction of a private residence or related structures or recreational facilities maintained by the Association. This restriction does not apply to machinery or equipment placed, operated, or maintained by any governmental or quasi-governmental agency or public utility in the exercise of its lawful functions. Any machinery or equipment used in connection with approved construction activities must be removed from the Lot upon completion of construction and may not be stored on the Lot or Common Area in a visible manner.

Section 16. Diseases and Insects.
No Owner may permit any condition to exist on any Lot or the Common Area that induces, breeds, harbors, or facilitates the spread of plant diseases or noxious insects. This includes, but is not limited to: maintaining standing water in quantities sufficient to breed mosquitoes or other insects; harboring diseased trees or vegetation without prompt treatment or removal; and storing materials in a manner that provides harborage for rodents or other vermin. On written notice from the Association or any Owner identifying a violation, the responsible Owner must promptly take all necessary remedial measures to eliminate the condition.

Section 17. Restriction on Further Subdivision.

No Lot within the Properties may be further subdivided, replatted, or otherwise divided into two or more parcels. No portion less than all of any Lot, nor any easement or other partial interest in a Lot, may be conveyed by any Owner to any person or entity, except for easements that may be granted to any governmental or quasi-governmental agency or a public utility for public purposes under applicable law. This restriction is intended to preserve the character and density of the residential community as originally planned and platted. Any attempt to subdivide a Lot in violation of this Section is void and of no effect.

Section 18. Signs.
No signs, whether movable or affixed, including commercial, political, ideological, or similar signs visible from neighboring property, may be erected or maintained on any Lot, except:

(a) Signs required to be posted or maintained by applicable federal, state, or local law;

(b) A residential identification sign bearing the address or name of the resident, with a combined total face area of seventy-two (72) square inches or less;

(c) During active construction of any building or other improvement approved by the Architecture Review Committee, one job identification sign not larger than eighteen (18) inches by twenty-four (24) inches in height and width, with a face area not larger than three (3) square feet. This sign must be removed promptly upon completion of construction;

(d) A "For Sale," "For Rent," or "For Lease" sign of a reasonable type, size, and appearance, consistent with signs customarily used in Travis County, Texas, to advertise individual parcels of residential real property, subject to additional reasonable guidelines the Board may adopt; and

(e) Such other signs as may be specifically approved in advance and in writing by the Board.

The content and location of all signs are subject to reasonable rules the Board may adopt from time to time, which must be uniformly applied to all Owners.

Section 19. Tanks, Windmills, and Elevated Storage.
No elevated tanks of any kind—including water storage tanks, propane or fuel storage tanks, or any other above-ground storage vessel visible from neighboring property—may be erected without the prior written approval of the Architecture Review Committee. Such approval may be conditioned upon adequate screening or enclosure. No windmill or wind energy device of any kind may be erected without the prior written approval of the Architecture Review Committee.

Section 20. Rainwater Harvesting Systems.
Rainwater harvesting systems, as defined by Texas Property Code Chapter 202 and specifically protected under Texas Property Code § 202.024, are permitted subject to the following restrictions:

(a) Rain barrels and rainwater harvesting systems may not be placed between the front of the residence and any adjoining or adjacent street. They must be: (i) located at the rear of the residence or in another location not visible from the street, other Lots, or

Common Area; and (ii) adequately shielded from view by fencing, foliage, or other means approved by the Association. These screening requirements shall be modified to the extent necessary to make a system economically possible and technically feasible.

(b) Rain barrels and harvesting systems must be a color consistent with the color scheme of the residence.

(c) No part of a rain barrel or harvesting system may display any language or other content that is not typically displayed on such equipment as manufactured.

Section 21. Solar Energy Devices.
No provision of this Declaration may be construed to prohibit or unreasonably restrict the installation of solar energy devices as provided in Texas Property Code § 202.010. The following restrictions apply. A solar energy device is prohibited if:

(a) The device is located anywhere other than: (i) the roof of the home or another permitted and approved structure; or (ii) a fenced yard or patio owned and maintained by the Owner.

(b) The device is mounted on the roof and: (i) extends higher than or beyond the roofline; (ii) does not conform to the slope of the roof and has a top edge that is not parallel to the roofline; or (iii) has a frame, support bracket, or visible piping or wiring that is not in a silver, bronze, or black tone commonly available in the marketplace, or is in a location not approved by the Association, unless the Owner's requested location increases the estimated annual energy production of the device by more than 10 percent above what production would be in the Association's designated area, as determined using a publicly available modeling tool provided by the National Renewable Energy Laboratory.

(c) The device is located in a fenced yard or patio and is taller than the fence line.

The Association may withhold approval, even if the above standards are met, if it determines in writing that the proposed placement constitutes a condition that substantially interferes with the use and enjoyment of land by causing unreasonable discomfort or annoyance to persons of ordinary sensibilities.

Section 22. Solar Roofing Materials.
Solar roofing materials are permissible, consistent with Texas Property Code § 202.010(d), when all of the following conditions are met:

(a) The materials are designed primarily to: (i) be wind and hail resistant; (ii) provide solar generation capabilities.

(b) When installed, the materials: (i) resemble shingles used or otherwise authorized for use in the subdivision; (ii) are more durable than and are of equal or superior quality to the shingles that are used or authorized in the subdivision; and (iii) match the aesthetics of the surrounding property, as determined in the Association's discretion.

Section 23. Cameras.
Exterior cameras are permitted, consistent with Texas Property Code § 202.022, subject to the following restrictions:

(a) Owners may not place cameras in any Common Area or on any property other than their own Lot.

(b) All cameras must be mounted on the Owner's home. Cameras may not be mounted on a pole in the yard, may not extend above the lowest portion of the roofline, and may not extend from the facade of the home more than 2 feet.

(c) Cameras must be oriented to capture as little of a neighboring Owner's property as reasonably possible.

(d) Ring-type doorbell cameras are allowed, even if they incidentally capture portions of properties across the street.

Section 24. Religious Displays.
Religious displays motivated by a resident's sincere religious belief are permitted, consistent with Texas Property Code § 202.020, subject to the following restrictions:

(a) No religious display may: (i) threaten public health or safety; (ii) violate a law; (iii) contain language, graphics, or any display that is patently offensive to a passerby; (iv) be installed on property owned or maintained by the Association; (v) be installed on property owned in common by two or more Members; (vi) be located in violation of any applicable building line, right of way, setback, or easement; or (vii) be attached to a traffic control device, street lamp, fire hydrant, or utility sign, pole, or fixture.

(b) Location and size parameters: (i) All religious displays must be located within 10 feet of the dwelling's front building line. (ii) Displays may not be located within building setbacks. (iii) No portion of a display may extend above the lowest point of the dwelling's front roofline. (iv) All displays must be kept in good repair. (v) Displays may not exceed 5 feet in height by 3 feet in width by 3 feet in depth. (vi) The number of displays is limited to three.

(c) Seasonal Religious Holiday Decorations may be displayed no more than 45 days before and no more than 21 days after the holiday in question. Seasonal religious holiday decorations are temporary decorations commonly associated with a seasonal holiday (e.g., Christmas or Diwali lighting, Christmas wreaths, and Hanukkah or Kwanzaa seasonal decorations). The Board has sole discretion to determine what items qualify as Seasonal Religious Holiday Decorations.

(d) All displays other than seasonal religious holiday decorations must receive prior approval from the Architecture Review Committee before installation, except for up to one display on any exterior door or door frame of the home that is 25 square inches or smaller. If the Architecture Review Committee has not been appointed, approval must come from the Board. The Association may remove any display that violates these requirements.

Section 25. Political Signs.
The following restrictions apply to signs advertising a political candidate or ballot item for an election, consistent with Texas Property Code § 202.018:

(a) Signs may be displayed only during the period beginning 60 days before the date of the election to which the sign relates and ending 10 days after that election date.

(b) Only one sign for each candidate or ballot item may be displayed at each residence. No sign may be larger than four feet by six feet.

(c) Each sign must be ground-mounted and may not: (i) incorporate roofing material, siding, paving materials, flora, balloons, lights, or other nonstandard decorative components; (ii) be attached to plant material, a traffic control device, a light, a trailer, a vehicle, or any other existing structure or object; (iii) include the painting of architectural surfaces; (iv) threaten public health or safety; (v) violate a law; (vi) contain language, graphics, or any display that would be offensive to the ordinary person; or (vii) be accompanied by music or other sounds, streamers, or other features that are distracting to motorists.

(d) The Association may remove a sign displayed in violation of these standards.

Section 26. Flags and Flagpoles.
The following restrictions apply to flags and flagpoles, consistent with Texas Property Code § 202.019:

(a) Flags must be displayed in accordance with applicable United States law (4 U.S.C. Sections 5–10) or Texas law (Chapter 3100, Government Code).

(b) All flagpoles must be building-mounted flagpoles

(c) Free-standing flagpoles are not permitted.

(d) No more than 2 building-mounted flagpoles, not to exceed six feet in length, may be installed on each Lot.

(e) No more than 1 flag may be flown from any flagpole. No flag may exceed 15 square feet in area, and all flags in aggregate shall not exceed 30 square feet in area.

(f) Exterior illumination of flags must be submitted for approval in the same manner as other exterior lighting.

Section 27. Basketball Goals.
Permanent basketball goals require Architecture Review Committee approval. Portable basketball goals are protected under Texas Property Code § 202.023 and may not be prohibited when in use, subject to reasonable placement and storage requirements as stated in this Section.

Portable basketball goals placed in streets or on sidewalks create a potential safety hazard and require Architecture Review Committee approval. Such goals must be stored daily after use, similar to a trash container. Violations of this requirement are subject to fines under the Association’s published fine schedule. If surrounding neighbors provide written approval, the Architecture Review Committee will take that into consideration.

Section 28. Waste.
No waste may be committed on any Lot or in the Common Area. For purposes of this Declaration, "waste" includes, but is not limited to: destruction, damage, or deterioration of improvements on any Lot or in the Common Area; dumping or discharge of pollutants, hazardous materials, or other waste substances on any Lot or in the Common Area or into any drainage facility or natural waterway within or adjacent to the Properties; and any act or omission that substantially diminishes the value or utility of any Lot or the Common Area. This Section shall be construed broadly to protect the environmental integrity and property values of the community.

Section 29. Lighting.
No exterior lighting or illumination fixture may be placed, installed, or operated on any Lot or in the Common Area in a manner that causes nuisance glare or unreasonable light intrusion onto any other Lot or into the Common Area. All exterior lighting must be directed downward or shielded to minimize glare and light trespass onto neighboring properties. Any Owner installing or operating exterior lighting in violation of this Section must, on written notice from the Association, promptly modify or redirect such lighting to eliminate the violation.

Section 30. Accessory Dwelling Units.
No accessory dwelling unit ("ADU"), secondary dwelling unit, garage apartment, backyard cottage, casita, in-law suite, or any other structure constituting a separate, independent dwelling unit may be constructed, placed, or maintained on any Lot within the Properties. Each Lot is limited to one (1) single-family residential dwelling unit as provided in Section 1 of this Article. This restriction is enforceable by the Association under Article XII of this Declaration.

Any conflict between the ADU provisions of applicable City ordinance and any restriction in this Declaration shall be resolved in favor of the applicable law to the extent required by applicable Texas law.

Section 31. Electric Vehicle Charging Equipment.
Owners may install electric vehicle (“EV”) charging equipment, including Level 1 (120V) and Level 2 (240V) EVSE charging stations, on their Lots, subject to the following conditions:

(a) all EV charging equipment must receive prior written approval from the Architecture Review Committee in accordance with Article VI of this Declaration before installation;

(b) all equipment must be installed by a licensed electrician in compliance with applicable building codes, electrical codes, and permitting requirements of the City of Austin and Travis County;

(c) all conduit, wiring, and equipment must be located on the Owner’s Lot and not on Common Area except as expressly authorized in writing by the Board;

(d) equipment must be installed and maintained in a neat, workmanlike manner and must not create an unsafe condition; and

(e) equipment, wiring, and conduit visible from neighboring properties or public streets must be screened or finished in a manner consistent with the character of the dwelling, as determined by the Architecture Review Committee.

The Board may adopt design guidelines governing the placement, screening, and aesthetics of EV charging equipment consistent with this Section.

Section 32. Generators and Standby Power Systems.
Owners may install whole-home standby generators and portable generators for emergency backup power, subject to the following conditions:

(a) all standby generators and their associated fuel storage systems (including natural gas connections, propane tanks, and associated piping) require prior written approval from the Architecture Review Committee in accordance with Article VII;

(b) standby generators must be enclosed in an enclosure that screens the unit from view from neighboring properties and from the Common Area, using materials compatible with the exterior of the dwelling, as approved by the Architecture Review Committee;

(c) propane or other liquid fuel storage tanks associated with a generator must comply with all requirements of Article VIII, Section 19 of this Declaration governing tanks, and must be located in compliance with all applicable fire, safety, and setback regulations;

(d) generator testing cycles must be conducted between 8:00 a.m. and 8:00 p.m. on all days of the week, and owners must make reasonable efforts to minimize noise during testing;

(e) no generator may be operated in a manner that creates a nuisance under Article VIII, Section 8 of this Declaration or applicable law.

Portable generators used during a power emergency are exempt from the approval requirement but must comply with applicable noise and emissions regulations and must be stored out of view when not in use.

Section 33. Community Surveillance and Privacy.
If the Association installs or operates community surveillance cameras, license plate readers, or other surveillance infrastructure on Common Area or at entry points to the Properties, the following policies apply:

(a) the Board must adopt a written Surveillance Policy, approved by the Board at a duly noticed meeting, before installing any Association-operated surveillance equipment, describing the location and purpose of each camera or device;

(b) the Surveillance Policy must specify the data retention period for recorded footage, which shall not exceed thirty (30) days for routine surveillance footage not associated with a specific incident or investigation;

(c) access to recorded surveillance footage shall be limited to Board members, authorized Association representatives, the Association's legal counsel, and law enforcement agencies acting pursuant to lawful authority;

(d) the Board must notify Members in writing of the existence, general location, and purpose of any Association-operated surveillance equipment within thirty (30) days of installation, and must make the current Surveillance Policy available to Members upon request;

(e) Association-operated surveillance equipment shall not be positioned or used in a manner that records the interior of any dwelling or the interior of any private fenced yard or patio area; and

(f) the Association shall comply with all applicable federal and Texas law governing video surveillance and data privacy. Nothing in this Section limits the rights of individual

Owners to maintain cameras on their own Lots as provided in Article VIII, Section 23 of this Declaration.

ARTICLE IX. RENTAL RESTRICTIONS AND REQUIREMENTS

Section 1. Prohibited Uses and General Rental Restrictions.
No Lot may be used as an apartment house, lodging house, hotel, bed and breakfast establishment, boarding house, short-term rental facility, or for any commercial or business purpose. No Lot may be offered or made available for transient or short-term occupancy of any kind, including through any online platform, app, or booking channel such as Airbnb, VRBO, HomeAway, or similar services.

Section 2. Permitted Rentals; Minimum Term.
An Owner may lease a Lot to a tenant for residential purposes, subject to a minimum lease term of six (6) months. No Owner may enter into any lease or rental agreement with a term of less than six (6) months. All leases are subject to the requirements of Article I of the Rules of Conduct adopted under the Association Bylaws and all applicable provisions of this Declaration.

Section 3. Lease Compliance Requirements.
To support enforcement of the restrictions in Sections 1 and 2 of this Article, all Owners who lease or rent a Lot must comply with the following requirements:

(a) **Prohibited-Use Clause.** Every lease or rental agreement must include a provision expressly stating that short-term rental of all or any portion of the Lot through any online platform, app, or other booking channel is prohibited by the governing documents of the Association.

(b) **Lease Production.** Upon request by the Board, an Owner must provide the Association with a copy of any lease or rental agreement within fourteen (14) days of such request. Personal financial terms may be redacted, but the copy must preserve the commencement date, term, and tenant identification information.

(c) **Evidence of Violation.** Active listing of a Lot for short-term rental on any online platform or booking channel shall constitute prima facie evidence of a violation of Section 1 of this Article, subject to the enforcement procedures of Article XII.

Section 4. Enforcement and Fines.
Violations of this Article are subject to enforcement under the procedures set forth in ARTICLE XII of this document. In addition to the standard fine schedule:

(a) Fines for short-term rental violations may, in the Board's discretion, be calibrated to the estimated rental income attributable to the unauthorized occupancy period, in

addition to or in lieu of standard fines, not to exceed the maximum amount permitted by applicable Texas law.

(b) Each separate unauthorized short-term rental booking or occupancy event constitutes a separate offense for purposes of the fine schedule.

Section 5. Rental Registration.

Consistent with Texas Property Code § 209.016, the Association does not require Owner approval of tenants and does not impose any application fee on tenants as a condition of occupancy. However, any Owner who leases or rents a Lot must register the tenancy with the Association within fourteen (14) days of the commencement of the lease term by providing the following information to the Board or its designated representative:

(a) the name or names of all adult tenants (18 years of age or older) residing in the dwelling;

(b) a telephone number and, if available, an email address at which each adult tenant can be reached for emergency communications;

(c) the commencement date and scheduled expiration date of the lease; and

(d) the Owner's current mailing address and telephone number during the tenancy.

The Association may use tenant contact information provided under this Section solely for emergency communications, enforcement communications, and Association notices required or permitted under this Declaration or applicable law, and for no other purpose. Tenant contact information is not subject to disclosure as a public record of the Association. The failure of an Owner to register a tenancy as required by this Section is a violation of this Declaration subject to enforcement under Article XII.

ARTICLE X - DEVIATIONS

Section 1. Deviation Process.

The Association may, by action of the membership following the procedure in this Article, grant approval for deviations from one or more of the restrictions, covenants, or conditions in Article VIII of this Declaration, or from any other provision of this Declaration, where an Owner seeks such a deviation for good cause. Good cause includes circumstances of physical hardship, topographical constraint, or other extraordinary conditions particular to the affected Lot that would make strict compliance unreasonably burdensome without a commensurate benefit to the community. No deviation may be granted that would violate any applicable provision of the City of Austin Code of Ordinances, Travis County development regulations, or any other applicable law or governmental order.

Any request for a deviation must be submitted in writing by the affected Owner to the Board, along with a description of the deviation sought, the specific provision or provisions from which deviation is requested, the reasons for the request, and any

plans, surveys, or other supporting materials reasonably necessary to evaluate the request. The Board must provide written notice of the deviation request to all Members not less than ten (10) days nor more than fifty (50) days before the date of the meeting at which the request will be considered, describing the purposes of the meeting and the deviation requested with enough detail for Members to make an informed decision.

A deviation may be approved only by the affirmative vote of fifty-one percent (51%) of the total membership voting at a meeting called for that purpose at which a quorum is present, and only if the voting membership finds that the requested deviation is consistent with the general intent and purposes of this Declaration and will not materially and adversely affect the value, character, or enjoyment of other Lots or the Common Area. Any approved deviation applies solely to the Lot and the specific condition for which it was granted and may not be construed as a general waiver of the restriction for any other Lot or purpose. The approval of a deviation must be documented in a written instrument signed on behalf of the Association. If the deviation affects the use or physical characteristics of a Lot in a manner that would be relevant to future Owners or mortgagees, that instrument must be recorded in the Official Public Records of Travis County, Texas. Any deviation not granted in strict compliance with the procedures of this Article is void and of no effect.

ARTICLE XI - EASEMENTS AND RIGHTS

Section 1. General Easement.

The Association retains, and shall at all times have, the right and easement to use the Common Area and, to the extent necessary and with advance notice to the Owner where practicable, any Lot or portion of a Lot, as reasonably needed for the repair, maintenance, or construction of improvements on that Lot or any other Lot or the Common Area, in discharging the Association's maintenance obligations under this Declaration. The Association must exercise this easement in a manner that minimizes disruption to the Owner's and residents' use and enjoyment of the affected Lot, and must restore the affected portions of the Lot to their prior condition upon completing the work that required entry.

Section 2. Crossover Easement.

If an Owner must, in order to make reasonable repairs or improvements to a building or structure on the Owner's Lot, enter upon or cross the Common Area or the Lot of another Owner, that Owner has a limited easement to do so, subject to the following conditions:

(a) The Owner must use the most direct and least intrusive, feasible route in entering and crossing the adjacent property;

(b) The Owner must promptly restore any area traversed or disturbed to its original condition at that Owner's sole expense, using materials and workmanship of equal or better quality to the original; and

(c) This easement does not exist with respect to the land of another Owner if the purpose of entry or crossing requires, under Article VI of this Declaration, the approval

of the Architecture Review Committee, unless that approval has been obtained in advance and in writing.

Before exercising this crossover easement, the Owner must provide reasonable advance written notice to the Owner of the affected Lot and to the Board.

Section 3. Alteration Easement.
If an Owner must, in order to make reasonable repairs or improvements to a building or structure on that Owner's Lot, alter a building or structure located on another Owner's Lot, that Owner has a limited right to do so, subject to the following conditions:

(a) The Owner exercising this right must create as little alteration as possible consistent with good building and engineering practices and achieving the legitimate repair or improvement purpose;

(b) That Owner must promptly restore the building or structure altered to its original condition at that Owner's sole expense;

(c) That Owner must provide such bonding or other security as the Owner of the building or structure to be altered shall reasonably require to assure performance of the restoration obligation; and

(d) This right does not apply if the purpose of the alteration requires, under Article VI of this Declaration, the approval of the Architecture Review Committee, unless that approval has been obtained in advance and in writing.

Section 4. Encroachment Easement.
If any structure erected or reconstructed by any Owner with the prior written approval of the Architecture Review Committee encroaches upon an adjoining Owner's Lot due to minor construction deviations or surveying tolerances, in compliance with the limits established by Article VI, Section 6 of this Declaration, the owner of the adjoining Lot grants to that constructing Owner an easement allowing the encroachment to persist for as long as the encroaching structure remains in place and is maintained in good condition. An overhang easement is also granted by any Owner whose eaves, gutters, or similar architectural elements overhang a reasonable and minimal distance onto or abut the Lot of another Owner, in compliance with this Article. No encroachment easement may be construed to authorize any encroachment not approved by the Architecture Review Committee or that exceeds the dimensional limits established in this Declaration.

Section 5. Drainage Easement.
Each Owner covenants and agrees to provide easements for drainage and waterflow as the natural contours of the land and the arrangement of improvements may require for the proper drainage of stormwater from and through the Properties. No Owner may alter the drainage patterns on the Owner's Lot in a manner that causes stormwater to drain onto neighboring Owners' Lots or into the Common Area in volumes or concentrations greater than existed before the alteration, without the prior written approval of the Architecture Review Committee. Each Owner must maintain all drainage facilities and easements on the Owner's Lot in good working condition and must promptly remove any obstruction that impairs the flow of stormwater.

Section 6. Easement for Accoutrements.

Where portions of residences and associated accoutrements—including, but not limited to, air conditioning and mechanical equipment, fences, walls, pipes, walkways, driveways, and patio structures—have been placed by original construction or with Architecture Review Committee approval on the Common Area, the Owner of the Lot served by such accoutrements retains the right and easement to maintain such items on the Common Area in their installed location for as long as such items serve their intended purpose and are maintained in good condition and repair. Further, the Owner of any Lot on which such an item is a part, or any subsequent Owner of that Lot, is granted an easement to traverse the Common Area to make repairs and replacements. However, this traversal easement does not exist if the purpose of traversing requires, under Article VI of this Declaration, the approval of the Architecture Review Committee, unless that approval has been obtained.

Section 7. Utility Easement.
An easement of ingress and egress is granted on all Lots and the Common Area in favor of any utility company, municipal utility district, or other entity authorized under Texas law to provide utility services, for the purpose of installing, repairing, constructing, maintaining, replacing, and operating all utility lines, cables, conduits, pipes, meters, and related facilities. However, no new utility line may be constructed on or relocated across any Lot or Common Area without the prior written approval of the Architecture Review Committee, and all utility work must be performed in a manner that minimizes disturbance to the surface of the Lot and Common Area, with prompt restoration of all disturbed areas to their prior condition.

Section 8. Construction Easement.
Any easement granted to an Owner to construct a driveway and driveway apron across the Common Area or an adjacent Lot must be constructed and maintained at the sole expense of the Owner, under standards the Architecture Review Committee may prescribe. If the Owner fails to maintain any such driveway easement in accordance with those standards, the Association may undertake necessary maintenance and shall recover the reasonable cost by Special Assessment of that Owner, following the notice and cure procedures in Article XII of this Declaration.

Section 9. Blanket Easement.
The Association retains an easement over all Lots and the Common Area for the construction, installation, maintenance, repair, and replacement of a common cable television system, common sprinkler system, common landscape irrigation system, common security systems, common lighting systems, or any other improvement or system installed for the common benefit of Owners. A further easement is granted for ongoing repair, maintenance, and replacement of any item so constructed or installed. Entry onto any Lot or the Common Area to carry out these purposes is not trespass, provided the Association gives reasonable advance notice to the affected Owner where practicable. Each Owner covenants not to damage, destroy, obstruct, or impair any portion of any items constructed or installed for the common benefit, and shall hold the Association harmless from the cost of repairing or replacing any portion damaged or destroyed by that Owner, the Owner's family members, guests, invitees, tenants, or contract purchasers.

ARTICLE XII - COMPLAINTS AND ENFORCEMENT

Section 1. Complaints by Owner.

If any Owner has a reasonable belief that another Owner is in violation of this Declaration, the complaining Owner may notify the allegedly offending Owner in writing, specifying the reasons for the complaint and identifying the provision of the Declaration alleged to have been violated. If the Owner receiving that notice fails to remedy the alleged violation within ten (10) days after delivery, or if the nature of the violation is such that it cannot reasonably be remedied within ten (10) days but the Owner fails to begin remediation within that ten (10) day period and diligently continue it to completion, a written complaint may be sent to the Chairman of the Board.

The Chairman of the Board must, within not more than ten (10) days after receiving the written complaint, first attempt to resolve the dispute through mediation. The complaining Owner shall notify the Board Chairman in writing, and the parties shall have thirty (30) days to agree on a neutral mediator and conduct mediation. A written settlement agreement signed by both parties resolves the matter. If mediation fails or either party declines in writing to participate, the Chairman must within ten (10) days choose a neutral party to arbitrate the dispute in such a manner as the arbitrator deems appropriate and consistent with the rules of the American Arbitration Association or other neutral arbitration procedures the parties agree upon. The arbitrator must announce a decision within thirty (30) days after the complaint is transmitted to the Chairman. If the Chairman or the arbitrator fails to act within the times specified, the complaint is considered denied. The arbitrator's reasonable expenses and professional fees shall be paid by the losing party. If the same conduct that forms the basis of a Section 1 Owner-to-Owner complaint also gives rise to a concurrent Section 2 Association complaint, the Board shall consolidate the matters into a single Section 2 proceeding and notify the complaining Owner in writing; the complaining Owner may participate in the consolidated proceeding and present evidence as directed by the Board.

Section 2. Complaints by the Association.

If the Board, based on its own observation or information received from any Owner or other reliable source, believes that any Owner is in violation of any provision of this Declaration, the Association must notify that Owner in writing as required by Texas Property Code § 209.006. The Board will send a Notice of Violation for each individual violation discovered. Before levying a fine or damage assessment, the Association shall send the Owner a written Notice of Violation by certified mail, return receipt requested, to the Owner's last known mailing address as shown in the Association's records (with a copy via email at the Board's discretion). That notice must:

(a) Describe the violation and state the remedy to be imposed, including any amount owed;

(b) Allow the Owner a reasonable time, by a specified date, to cure the violation and avoid the fine. This cure period does not apply if:

(i) the Owner received notice and a reasonable opportunity to cure a similar violation within the preceding 6 months; or

(ii) the violation is uncurable, poses a threat to public health or safety, or is not reasonably susceptible of being corrected within the specified cure period;

(c) State that not later than the 30th day after the date of the notice, the Owner may request in writing a hearing before the Board to contest the matter;

(d) State that attorney's fees and costs will be charged if the violation or delinquency continues after a specified deadline; and

(e) Include notice of special rights or relief available to persons on active military duty under federal law, including the Servicemembers Civil Relief Act (50 U.S.C. §§ 3901 et seq.).

The Association may give one or more courtesy notices at the Board's discretion before sending a formal Notice of Violation. Payment of a fine does not substitute for correcting the violation. These notice requirements do not apply to a lawsuit seeking a temporary restraining order or temporary injunctive relief, or to the collection of regularly scheduled assessments and late fees.

Upon receiving a timely written request for a hearing, the Board shall promptly schedule the hearing, designate a hearing panel of not fewer than three (3) members of the Board, and give the Owner at least ten (10) days' advance written notice (including by email) of: the date, time, and place; the names of the designated panel members; and the Owner's right to appear with or without legal counsel or an authorized representative. The hearing panel shall issue a written decision within fourteen (14) days and provide a copy to the Owner.

If the Owner fails to remedy the alleged violation within the cure period stated in the notice, or within such longer reasonable period as the nature of the violation may require, the Association may:

(i) attempt to resolve the dispute through voluntary mediation before proceeding to arbitration or litigation, with the parties sharing the cost of a neutral mediator; or (i-a) institute appropriate legal action in any court of competent jurisdiction; or

(ii) if mediation is unsuccessful or declined, submit the dispute to arbitration under the rules of the American Arbitration Association, decided by a majority of three (3) arbitrators chosen as follows:

(iii) the Owner and the Association each choose one (1) arbitrator, and a third arbitrator is chosen by the two (2) previously chosen arbitrators.

(iv) If either party fails to choose an arbitrator within fifteen (15) days after the complaint is transmitted to the Owner, the other party may choose the second arbitrator.

The arbitrators must issue a decision within thirty (30) days after the complaint is transmitted to the Owner. If the arbitrators fail to act within thirty (30) days, the complaint is considered dismissed.

The prevailing party in any litigation or arbitration is entitled to recover all costs and expenses, including reasonable attorney's fees, from the non-prevailing party, as permitted by applicable Texas law.

The general categories of restrictive covenants for which the Association may levy fines include violations of: (1) this Declaration and any amendments; (2) the Bylaws and any amendments; (3) rules and policies, including design guidelines, and any amendments; and (4) the Articles of Incorporation or Certificate of Formation and any amendments.

Section 3. Remedy of Violations.
If the arbitrator or arbitrators under Section 1 or Section 2 of this Article uphold the complaint, the Owner found to be in violation must be notified in writing and must promptly remedy the violation within thirty (30) days after that notification, or within such other time period as the arbitration decision or any applicable court order specifies.

If the Owner fails to remedy the violation within the specified period, the Association may, but is not obligated to, take all actions necessary or appropriate to remedy the violation, including entering upon the Lot for that purpose. The Association shall add the reasonable cost of that remedial action as a Special Assessment to the Owner's normal Annual Assessment. The Association and its authorized designees have the right of entry onto the Owner's Lot for the purpose of carrying out the remediation authorized by this Section, and such entry is not trespass. Any Special Assessment imposed under this Section is subject to the same lien and collection remedies as Annual Assessments.

Section 4. Fines and Penalty Schedule.
The Board shall adopt and maintain a written Fine Schedule that establishes the specific dollar amounts applicable to violations of this Declaration, the Bylaws, and any rules and regulations of the Association. The Fine Schedule must be published and made available to all Members before any fines are assessed. The Board may amend the Fine Schedule by Board resolution at any time, with written notice to all Members of the revised schedule at least thirty (30) days before revised amounts take effect. This delegation allows the Board to adjust fine amounts over time without a formal Declaration amendment. The following amounts serve as the default fine schedule until the Board adopts a superseding schedule by resolution:

(1) First Offense: $150

(2) Second Offense: $300

(3) Third and Subsequent Offenses: $450

The Board will set each fine in its reasonable discretion. In doing so, the Board may consider all relevant factors, including the nature of the violation, its frequency, and its effect on neighboring Owners and properties. The Board may depart from the foregoing schedule and impose a higher fine. The Association may charge an administrative fee of not more than $25 per notice to defray the cost of processing violation notices.

The following rules apply to repeat violations:

(a) Fines for a discrete incident are imposed on a per-occurrence basis. Failure to correct a violation within the time specified in a Notice will be considered a new violation.

(b) If a curable violation is not corrected within the cure period specified in the Notice of Violation (which shall be not less than ten (10) days for purposes of consistency with the Owner-to-Owner complaint cure period in Section 1 of this Article, unless a longer

period is specified by the Board), it will be treated as a repeat offense and subject to an escalating fine.

(c) The fine for a repeat violation within 6 months will be higher than for the previous offense.

(d) For violations of a continuous or ongoing nature, fines may be imposed on a daily or weekly basis (assessed daily absent a Board resolution to the contrary), as long as the Notice advises the Owner that fines will be imposed on that basis. Notwithstanding any other provision of this Section, daily fines for a continuing violation shall not exceed two hundred dollars ($200) per day, and the total fines for any single violation shall not exceed five thousand dollars ($5,000), unless a higher amount is authorized by applicable Texas law. These limits reflect the current statutory caps under Texas Property Code § 202.004© and shall be adjusted automatically to conform to any amendment of that provision. Consistent with Texas Property Code § 202.004(b), the Association may not assess a fine for a violation of any provision not contained in a dedicatory instrument or governing document of the Association that has been adopted and published to Members. Any purported fine for a non-documented restriction is void.

For reference, violations fall into the following categories:

(1) Threats to Public Health or Safety — the violation could materially affect the physical health or safety of an ordinary resident;

(2) Uncurable — the violation has occurred but is not a continuous action or condition capable of being remedied by affirmative action (e.g., shooting fireworks, a noise event that is not ongoing, or another completed prohibited act);

(3) Curable — the violation is ongoing (e.g., failure to perform construction in accordance with approved plans, ongoing noise, or a barking dog).

ARTICLE XIII - GENERAL PROVISIONS

Section 1. Enforcement.
The restrictions, covenants, and conditions in this Declaration run with the land and bind the present Owners of all Lots within the Properties, their heirs, personal representatives, successors, and assigns, and all parties claiming by, through, or under any of them. Each Owner is taken to hold, agree, and covenant with all other Owners of Lots within the Properties, and with the Association, to conform to and observe these restrictions, covenants, and conditions as to the use of their respective Lots and the construction of improvements. This Declaration benefits and is enforceable by the Association and each Owner of a Lot within the Properties, their respective legal representatives, heirs, successors, and assigns.

Enforcement of this Declaration may be pursued by the Association or by any Owner by any proceeding at law or in equity, subject to the procedural requirements in Article XII of this Declaration and applicable Texas law, including Chapter 209 of the Texas Property Code governing notice, opportunity to cure, and the right to a hearing before the Board before the imposition of fines or the commencement of enforcement

proceedings. No enforcement action may be commenced until the applicable procedure in Article XII, Section 1 or Section 2, as appropriate, has been completed, except where immediate action is required to prevent imminent injury to persons or property.

Failure of the Association or any Owner to enforce any restriction, covenant, or condition at any particular time or with respect to any particular violation is not a waiver of the right to enforce that restriction, covenant, or condition at any subsequent time or with respect to any other or subsequent violation. No course of conduct by the Association or any Owner, however long continued, may be construed as a waiver of any provision of this Declaration or as an estoppel preventing its enforcement. The Association must exercise its enforcement authority in a reasonable and non-discriminatory manner and must apply the provisions of this Declaration uniformly to all Owners and all Lots.

Section 2. Severability.
If any covenant, condition, restriction, easement, or other provision of this Declaration is invalidated, in whole or in part, by any judgment, court order, administrative ruling, or operation of law, that invalidation does not affect any other provision of this Declaration, each of which remains in full force and effect to the maximum extent permitted by applicable law. If any provision of this Declaration is found to be invalid, unenforceable, or in conflict with applicable law, that provision shall be reformed to the minimum extent necessary to make it valid and enforceable while preserving, to the maximum extent possible, the original intent of the provision as reflected in the context of this Declaration as a whole. The parties intend that this Declaration be enforced to the fullest extent permitted by applicable Texas law.

Section 3. Duration and Amendment.
All restrictions, covenants, and conditions in this Declaration shall continue and be binding upon all Lots within the Properties and all Owners for an initial term commencing on the date this Amended and Restated Declaration is recorded in the Official Public Records of Travis County, Texas, and continuing for twenty-five (25) years from that date. After the initial term, this Declaration shall automatically extend for successive periods of ten (10) years each, unless terminated or modified as provided in this Section.

During the initial twenty-five (25) year term, this Declaration may be vacated or modified, in whole or in part, only by a written instrument signed by not less than sixty-seven percent (67%) of the Owners of all Lots within the Properties, acknowledged and recorded in the Official Public Records of Travis County, Texas. At the end of the initial twenty-five (25) year term, or at the end of any successive ten (10) year extension period, the Owners of not less than sixty-seven (67%) of all Lots within the Properties may, by a written instrument signed by all such Owners, acknowledged and recorded in the Official Public Records of Travis County, Texas, vacate or modify all or any part of this Declaration. Any such vacation or modification must be filed in the Travis County Official Public Records promptly upon execution.

The Bylaws and any rules and regulations adopted under this Declaration may be amended or modified by:

(a) action of the Board, as permitted by the Bylaws and applicable Texas law, for matters within the Board's delegated authority; or

(b) a vote of sixty-seven percent (67%) of the membership present or represented by proxy at any meeting at which a quorum is present.

The Board's authority to amend the Bylaws without a membership vote is limited to procedural, administrative, and ministerial matters that do not materially affect the substantive rights of Members. Any amendment that materially expands the Board's authority, restricts Owner rights, increases assessment obligations, or modifies the voting or governance structure of the Association requires the affirmative vote of sixty-seven percent (67%) of the membership.

Consistent with Texas Property Code § 209.0041, any amendment to this Declaration must satisfy all of the following procedural requirements: (a) the proposed amendment must be submitted to all Members in writing not less than fourteen (14) days before the meeting at which the vote is taken, including the full text of the proposed amendment; (b) the amendment must be approved by the percentage of Members stated in this Section at a meeting with quorum present, or by written consent signed by the required percentage of all Lot Owners; (c) the amendment instrument must be signed and acknowledged by the officers authorized by the Board; and (d) the amendment must be recorded in the Official Public Records of Travis County, Texas, before it takes effect. The Secretary/Treasurer shall file the amendment and notify all Members of its recordation within thirty (30) days. No amendment to this Declaration or the Bylaws is effective until adopted in accordance with the applicable procedures and, where required by applicable law or by the terms of this Declaration, recorded in the Official Public Records of Travis County, Texas. The Board must maintain a current, integrated version of this Declaration, reflecting all amendments, and must make that version available to all Members upon request.

Section 4. Notices.
All notices the Association is required or permitted to give to its Members under this Declaration are deemed duly given when:

(a) actually received by the Member at any time;

(b) deposited in the United States Mail, postage prepaid, sent by first class mail or, where required by applicable law, by certified mail, return receipt requested, addressed to the Member at the address shown in the books and records of the Association; or

(c) transmitted by electronic mail to the email address the Member has registered with the Association, in accordance with Texas Property Code § 209.0051, unless the Member has opted out of electronic notice in writing.

Electronic notice is a co-equal default method of delivery alongside physical mail.

The Association must maintain a current mailing address and, where provided, an email address for each Member. Each Member is responsible for notifying the Association of any change in mailing or email address within thirty (30) days of that change. The Board may also use community management software, Association portals, or text messaging platforms as supplemental channels, provided that at least one of the primary methods

above (mail or email) is always used for any legally required notice. Where certified mail is expressly required by applicable law, that requirement is not satisfied by email alone.

Notices from any Member to the Association must be addressed to the Secretary/Treasurer of the Association at the address designated by the Board, or, if no such address has been designated, to the President at his or her last known address in the Association's records. A Member may also provide notice to the Association in any other manner the Board designates by written notice to all Members, including by electronic mail to a designated Association email address, provided that this alternative method does not diminish any Member's right to provide notice by United States Mail.

Section 5. Rules of Conduct.
The Board has authority, under Article VIII of the Bylaws, to adopt, amend, and enforce reasonable rules and regulations governing the conduct of Owners, residents, guests, and invitees within the Properties, Common Area, and private road Canyonside Trail. Such rules and regulations may cover, among other things, use of the Common Area, maintenance of Lots, parking, speed limits on Canyonside Trail, pets, trash, and other matters relating to the health, safety, and welfare of the community. Such rules and regulations shall be set forth in the Bylaws or in such other instrument as the Board may designate, and must be made available to all Members and residents. A majority vote of the Members at a duly called meeting at which a quorum is present may overrule any rule or regulation adopted by the Board.

The Board must maintain and enforce the following rules, which are incorporated by reference as minimum standards of conduct:

(a) Single-Family Tenants. The objective of the Association is to protect the value and desirability of the single-family residential community known as Meadow Mountain Planned Unit Development II-A. Owners must not allow any occupancy of their Lot that is inconsistent with the single-family residential character of the community. No Owner may sublet any portion of a dwelling unit separately from the whole, and no Owner may enter into any arrangement for occupancy of any Lot that is inconsistent with the single-family residential character of the community.

(b) Owner Responsibility for Tenants and Contract Purchasers. Each Owner is personally responsible for ensuring the compliance of that Owner's tenants, contract purchasers, guests, and invitees with all provisions of this Declaration, the Bylaws, and the rules and regulations of the Association. Any violation of such provisions by an Owner's tenants, contract purchasers, or other occupants is deemed by the Association to have been committed by the Owner, and all remedies available to the Association shall be addressed to and enforced against the Owner. Each Owner must prohibit tenants and contract purchasers from subletting the premises or any portion of them. Each Owner must provide each tenant, lessee, or contract purchaser with a complete copy of the current Declaration, Bylaws, and rules and regulations of the Association before the commencement of occupancy, and must obtain from each such person a written acknowledgment of receipt of those documents and agreement to comply with their terms.

(c) Speed Limit on Canyonside Trail. Canyonside Trail is a private, narrow, curved roadway with a cul-de-sac terminus, constituting a part of the Association's Common

Area and the primary means of access to the Properties. Prudent and attentive driving is required at all times. For the health, safety, and welfare of every resident, family member, guest, and pet, the maximum speed limit along Canyonside Trail is fifteen (15) miles per hour. No person may operate any motor vehicle, bicycle, or other conveyance on Canyonside Trail in a reckless, careless, or unreasonably fast manner, regardless of whether such speed exceeds the posted limit. The Board may post appropriate speed limit signs and enforce this speed limit through the assessment of fines under the Association's published fine schedule.

Section 6. Compliance with Texas Property Code Chapter 209.
This Declaration is expressly intended to be, and shall be construed and administered to be, fully compliant with all applicable provisions of Chapter 209 of the Texas Property Code, as amended from time to time. The Association shall at all times:

(a) Adopt and maintain a document production policy under Texas Property Code § 209.005, giving Owners the right to inspect and copy Association records—including this Declaration, the Bylaws, rules and regulations, financial records, meeting minutes, and contracts—on written request and subject to such reasonable fees and procedures as the Board may establish;

(b) Conduct all meetings of the Board and of the membership in compliance with the open meeting requirements of Texas Property Code § 209.0051, including providing Owners with advance notice of Board meetings and an opportunity to speak on agenda items before the Board acts;

(c) Adopt and maintain an annual budget as required by Texas Property Code § 209.0052, and provide Owners with a summary of the adopted budget or written notice of its adoption within the time periods required by applicable law;

(d) Comply with all notice, hearing, and fine assessment procedures required by Texas Property Code §§ 209.006 and 209.007 before taking enforcement action against any Owner, including providing written notice of alleged violations, a reasonable opportunity to cure, and the right to a hearing before the Board before the imposition of any fine or suspension of Owner rights;

(e) Comply with all lien and foreclosure procedures required by Texas Property Code §§ 209.023 and 209.0091, including the provision of pre-lien notice by certified mail, the Owner's right to cure and to request a payment plan, and the requirement of judicial approval for foreclosure of an assessment lien in appropriate circumstances;

(f) Comply with all Owner rights and Association obligations in Texas Property Code §§ 209.00592 through 209.016, as amended from time to time, including provisions governing elections, proxy voting, access to records, restrictions on Association authority, and Owner rights with respect to the use and enjoyment of their Lots; and

(g) If any provision of this Declaration conflicts with any mandatory provision of Chapter 209 of the Texas Property Code, apply the statutory provision, and treat the conflicting Declaration provision as modified to the minimum extent necessary to achieve consistency with applicable law.

The Board must periodically review the provisions of this Declaration and the Association's practices and procedures in light of current statutory requirements and,

where appropriate, propose amendments to this Declaration or adopt revised rules and regulations to ensure continued compliance with applicable Texas law.

Section 7. Owner Requests for Records.
An Owner, or the Owner's authorized representative, who wishes to inspect or obtain copies of Association records must submit a written request by certified mail. The request must:

(a) describe the books and records requested with sufficient detail; and

(b) state whether the Owner wishes to inspect the records before obtaining copies or wishes to receive copies directly.

If the Owner requests inspection, the Association shall respond within 10 business days by providing written notice of the dates and times during normal business hours when inspection may occur. If copies are requested and the Association cannot produce them within 10 business days, it must give written or digital notice of that fact and state a date, within the next 15 business days, when the copies will be available.

The Association may produce documents in hard copy, electronic, or other format of its choosing. The Association will charge for time spent compiling and producing all records, and for reproduction costs if copies are requested, at the maximum amount allowed by applicable statute. The Association may require advance payment of estimated costs. If the actual cost is less than the estimate, the Association shall refund the excess within 30 business days. If the actual cost is greater, the Owner shall pay the excess within 30 business days after the records are delivered. If the Owner fails to pay, the unpaid excess shall be added to the Owner's account with the Association.

The Association is not required to provide the following types of information without the prior written consent of the person who is the subject of the information:

(i) Owner violation history;

(ii) Owner personal financial information;

(iii) Owner contact information other than the Owner's address; or

(iv) information that is legally exempt or protected from disclosure.

The Association's duty to provide records applies only to existing books and records. The Association is not obligated to create a new document, prepare a summary of information, or compile and report data.

Section 8. Record Retention.
The Association shall retain its records according to the following schedule:

(a) Permanent retention:

(i) Articles of Incorporation or Certificate of Formation and all amendments;

(ii) Bylaws and all amendments; and

(iii) Restrictive Covenants and all amendments.

(b) 7-year retention:

(i) Financial books and records;

(ii) Minutes of Owner meetings;

(iii) Minutes of Board meetings;

(iv) Tax returns; and

(v) Audit records.

(c) 5-year retention:

(i) Account records of current Owners.

(d) 4-year retention:

(i) Contracts with a term of one year or more (retained for 4 years after the contract term expires).

(e) Discretionary guidance (the Association has no legal duty to follow this protocol but may elect to do so for other records):

(i) insurance records - 4 years;

(ii) contracts for terms of less than one year - 4 years from the date of the contract;

(iii) architectural applications and approvals - 4 years;

(iv) enforcement records - 4 years;

(v) inspection reports - 2 years;

(vi) accident reports – 2 years;

(vii) general correspondence – 2 years;

(viii) emails and other electronic communications - 2 years.

Section 9. Governing Law.
This Declaration shall be governed by and construed under the laws of the State of Texas, including the Texas Property Code, the Texas Nonprofit Corporation Law, and applicable Travis County and City of Austin ordinances and regulations. Any legal action arising under or in connection with this Declaration shall be brought in the appropriate courts of Travis County, Texas, or in the United States District Court for the Western District of Texas, Austin Division, as applicable. The Association and each Owner, by accepting the terms of this Declaration, consent to the personal jurisdiction of such courts for purposes of any action arising under this Declaration.

Section 10. No Discrimination.
The restrictions, covenants, and conditions in this Declaration shall be applied and enforced without regard to race, color, religion, national origin, sex, sexual orientation, gender identity, familial status, disability, or any other classification protected by applicable federal, state, or local law. No provision of this Declaration may be construed or applied in a manner that discriminates against any person or class of persons in violation of the Fair Housing Act, the Texas Fair Housing Act, or any other applicable anti-discrimination law. Any provision of this Declaration that is or becomes inconsistent with applicable anti-discrimination law is void and of no force or effect to the extent of that inconsistency.

Section 11. Online Document Availability.
Consistent with Texas Property Code § 207.006, the Association shall maintain a publicly accessible website or online portal through which the following governing documents and information shall be made available at no charge to Members and, where required by law, to the general public:

(a) this Declaration and all recorded amendments;

(b) the Bylaws and all amendments;

(c) the Rules of Conduct and any other rules and regulations adopted by the Board;

(d) the current Annual Assessment amount and due dates;

(e) the current Fine Schedule adopted by the Board;

(f) the most recently adopted annual budget; and

(g) any other documents required to be posted by applicable Texas law, as amended from time to time.

The Board shall ensure that the online documents are kept current and that any amendment to a governing document is reflected on the website within sixty (60) days of adoption. The website shall display the date on which each document was last updated. Maintaining a website for this purpose does not relieve the Association of any obligation to provide governing documents to Members by mail or other means upon request under Texas Property Code § 209.005 or other applicable law.

Section 12. Homeowner Insurance Requirements.
Each Owner shall maintain, at the Owner's expense, a homeowner's property and liability insurance policy on the Owner's Lot and dwelling, throughout the period of the Owner's ownership, subject to the following minimum requirements:

(a) property coverage in an amount not less than the full replacement cost of the dwelling and improvements on the Lot, or such lesser amount as the Board may establish by resolution from time to time with written notice to all members;

(b) general liability coverage in an amount not less than three hundred thousand dollars ($300,000) per occurrence, or such higher amount as the Board may establish by resolution; and

(c) the policy must be issued by an insurer authorized to do business in the State of Texas.

Each Owner must, within thirty (30) days of written request by the Board, provide the Association with written evidence of insurance coverage satisfying the requirements of this Section (such as a certificate of insurance or declarations page). The Association is not responsible for ensuring that any Owner maintains insurance in compliance with this Section, and the failure of any Owner to maintain required insurance is a violation of this Declaration subject to enforcement under Article XII. This Section does not obligate the Association to maintain insurance on behalf of any Owner or on any individual Lot.

Section 13. Force Majeure — Association Obligations.

The Association shall not be liable for failure or delay in performing any of its obligations under this Declaration if and to the extent that such failure or delay is caused by events beyond the Association's reasonable control, including but not limited to: natural disasters, severe weather events, winter storms, floods, earthquakes, pandemic or public health emergency declared by a governmental authority, acts of war or terrorism, civil disorder, governmental action or mandated shutdown, utility failures, labor strikes, supply chain disruptions, or other force majeure events ("Force Majeure Events"). During any Force Majeure Event, the Association's maintenance, repair, and other performance obligations under this Declaration are suspended to the extent performance is rendered impractical or impossible by the Force Majeure Event, and such suspension shall not constitute a breach of this Declaration or give rise to any claim by any Owner against the Association. The Association shall resume performance of its suspended obligations as promptly as practicable after the Force Majeure Event has abated to a degree that permits reasonable resumption of operations. The Association shall provide Members with reasonable written notice of any Force Majeure Event affecting its operations and a general description of suspended obligations, to the extent reasonably practicable given the circumstances. This Section does not relieve the Association of its obligation to take emergency measures reasonably within its means to protect the Common Area and the safety of residents during any Force Majeure Event.

Section 14. Resale Certificates.
Consistent with Texas Property Code § 207.003 and § 209.011, any Owner who desires to sell a Lot must be able to obtain a resale certificate from the Association. The following procedures govern the issuance of resale certificates:

(a) Upon written request by an Owner or an Owner's authorized representative, the Association shall issue a resale certificate not later than the tenth (10th) business day after the date the Association receives the request, or such shorter period as the requesting Owner may specify, provided that the specified period is not less than five (5) business days. The Association may charge a reasonable fee for preparing the resale certificate, not to exceed the amount permitted by Texas Property Code § 207.003.

(b) The resale certificate shall include, at a minimum, the following information as of the date of issuance:

(i) the amount and frequency of regular assessments;

(ii) the amount of any special assessment that has been approved and levied but not yet collected;

(iii) whether the Lot is in compliance with this Declaration and the rules of the Association, or if not, a description of each known violation;

(iv) the amount of any unpaid assessments, fines, fees, or other charges currently owed to the Association by the Owner or against the Lot;

(v) whether any pending enforcement action or litigation involves the Lot;

(vi) the contact information for the Association or its management company; and

(vii) any other information required by applicable Texas law at the time of the request.

(c) A purchaser of a Lot may cancel a purchase contract not later than the fifth (5th) day after the date the purchaser receives the resale certificate, if the resale certificate is not received before the execution of the purchase contract. Alternatively, a purchaser may cancel a purchase contract not later than the fifth (5th) day after the date the purchaser receives the resale certificate if the resale certificate was not made available to the purchaser before the execution of the purchase contract. The right of cancellation is a right of the purchaser under Texas Property Code § 207.005 and may not be waived.

(d) A resale certificate is valid for six (6) months from the date of issuance, unless the information contained in it changes materially before expiration, in which case the Association shall promptly notify the requesting Owner of the material change. The Association shall not be liable to any party for inaccurate information in a resale certificate if the inaccuracy resulted from information provided by the Owner requesting the certificate.

(e) The Board shall adopt written procedures for the timely preparation and issuance of resale certificates, designate a responsible officer or agent, and ensure the procedures are communicated to all Members, consistent with the requirements of Texas Property Code §§ 207.003 and 209.011.

Section 15. Relationship to Bylaws and Other Governing Documents.

This Declaration and the Bylaws of the Association are complementary instruments intended to be construed together as a unified governance framework. The Bylaws govern the Association's internal corporate structure and administration, including Board elections and terms (Bylaws Art. V), officer duties (Bylaws Art. VII), membership meeting procedures (Bylaws Art. IV), committee structure (Bylaws Art. IX), financial controls (Bylaws Art. X), and rule-adoption authority (Bylaws Art. VIII). References in this Declaration to the 'Bylaws' mean the Bylaws of Meadow Mountain Property Owners Association No. II-A, Inc., as amended from time to time under Article VI of the Bylaws. All capitalized terms defined in Article I of this Declaration have those meanings throughout the Bylaws and Rules of Conduct. In the event of conflict, this Declaration controls over the Bylaws; the Bylaws control over the Rules of Conduct; and the Rules of Conduct control over design guidelines and the Fine Schedule, consistent with Article I, Section 22 of this Declaration.

ARTICLE XIV - RATIFICATION AND EXECUTION

Section 1. Ratification by All Owners.

This Amended and Restated Declaration of Covenants, Conditions and Restrictions of Meadow Mountain Property Owners Association No. II-A has been approved by the requisite percentage of Owners of Lots within the Properties in accordance with the amendment procedures set forth in Article XIII, Section 4 of the original Declaration of November 16, 1981. By the execution of this instrument by the duly authorized officers

of the Association on behalf of all consenting Owners, and by the recordation of this instrument in the Official Public Records of Travis County, Texas, this Amended and Restated Declaration shall supersede and replace in its entirety the original Declaration filed November 16, 1981, and all prior amendments thereto, and shall constitute the sole and operative Declaration of Covenants, Conditions and Restrictions governing all Lots within the Properties from and after the date of its recordation.

Notwithstanding the foregoing, the recordation of this Amended and Restated Declaration shall not affect the validity or enforceability of any assessment lien that arose under the original Declaration prior to the effective date of this instrument, which liens shall remain in full force and effect in accordance with their terms until fully paid and satisfied or otherwise extinguished in accordance with applicable Texas law. Similarly, any enforcement proceedings commenced under the original Declaration prior to the effective date of this instrument shall continue to be governed by the provisions of the original Declaration and applicable law as in effect at the time of commencement, unless the affected Owner and the Association agree in writing to apply the provisions of this Amended and Restated Declaration to such proceedings.

Section 2. Supersession of Original Declaration.
All references in the Bylaws of the Association, the Rules of Conduct (Exhibit "A" to the Bylaws), and any other governing document of the Association to the original Declaration of Covenants, Conditions and Restrictions filed November 16, 1981, shall, from and after the effective date of this Amended and Restated Declaration, be deemed references to this Amended and Restated Declaration and the corresponding provisions hereof. All capitalized terms used in the Bylaws, the Rules of Conduct, or any other governing document of the Association shall, to the extent defined herein, have the meanings set forth in Article I of this Declaration. In the event of any conflict between the terms of the Bylaws or Rules of Conduct and the terms of this Amended and Restated Declaration, the provisions of this Amended and Restated Declaration shall govern and be controlling.

Section 3. Existing Approvals and Variances.
All approvals, variances, deviations, and other determinations duly granted or made by the Architecture Review Committee, the Board of Directors, or the membership of the Association under the original Declaration prior to the effective date of this Amended and Restated Declaration shall remain in full force and effect in accordance with their terms and shall not be affected by the substitution of this Amended and Restated Declaration for the original Declaration. Any application for approval or variance pending before the Architecture Review Committee or the Board of Directors on the effective date of this instrument shall be reviewed and determined in accordance with the provisions of this Amended and Restated Declaration.

Section 4. Recordation.
Upon execution by the duly authorized officers of the Association, this Amended and Restated Declaration shall be filed for record in the Official Public Records of Travis County, Texas, by the Secretary/Treasurer of the Association. The Association shall provide each Member with written notice of the recordation of this instrument within thirty (30) days of the date of recordation, together with information regarding how

Members may obtain a copy of the recorded instrument. The costs of recordation shall be paid from the general funds of the Association.

IN WITNESS WHEREOF, the Meadow Mountain Property Owners Association No. II-A, Inc. has caused this instrument to be executed by its duly authorized officers as of the date of recordation hereof.

MEADOW MOUNTAIN PROPERTY OWNERS ASSOCIATION NO. II-A, INC.,

a Texas nonprofit corporation

By:

_____

Name: _____

Title: President

By:

_____

Name: _____

Title: Secretary

STATE OF TEXAS §

COUNTY OF TRAVIS §

This instrument was acknowledged before me on the _____ day of _____, 20____, by _____ as President, and _____ as Secretary, of Meadow Mountain Property Owners Association No. II-A, Inc., a Texas nonprofit corporation, on behalf of said corporation.

_____

Notary Public, State of Texas

My commission expires: _____